Supreme Court, U.S.
FILED
JAN 31 1997
CLERK

(5)

No. 96-5955

In The

Supreme Court of the United States

October Term, 1996

STEINEY J. RICHARDS,

Petitioner,

vs.

THE STATE OF WISCONSIN,

Respondent.

On Writ Of Certiorari To The Supreme Court Of The State Of Wisconsin

JOINT APPENDIX

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Petition For Certiorari Filed September 10, 1996
Certiorari Granted January 3, 1997

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113 pp

TABLE OF CONTENTS

Page

Chronological List of Relevant Docket Entries..... 1

Complaint for Search Warrant and Search Warrant filed January 2, 1992 2

Criminal Complaint filed January 24, 1992 13

Transcript of Proceedings – Preliminary Hearing February 4, 1992: 18

Testimony of Jeffrey A. Teuscher..... 18

Direct Examination [10-22]..... 18

Cross Examination [22-26] 28

Information filed February 4, 1992..... 33

Notice of Motion and Motion to Suppress – Search Warrant, filed March 25, 1992 35

Transcript of Proceedings – Evidentiary Hearing September 9, 1992:..... 37

Testimony of Richard Pharo 37

Direct Examination [14-19]..... 37

Cross Examination [19-23] 41

Testimony of Steiney J. Richards..... 45

Direct Examination [24-27]..... 45

Statements of Counsel and Oral Ruling of Court [27-36] 47

Motion to Supplement Record filed October 5, 1992 .. 57

Affidavit Accompanying Motion to Supplement Record filed October 5, 1992..... 58

TABLE OF CONTENTS – Continued

Page

Transcript of Proceedings – Motion Hearing October 12, 1992: 60

Statements of Counsel and Ruling of Court [3-8] ... 60

Testimony of Richard Pharo 64

Direct Examination [8-10] 64

Cross Examination [10-13] 65

Ruling of Court [13-14] 68

Judgment of Conviction October 12, 1992 70

Decision of Wisconsin Court of Appeals March 3, 1994 73

Decision of Wisconsin Supreme Court June 12, 1996 .. 76

Concurring Opinion by Justice Shirley S. Abrahamson June 12, 1996 97

Order of the Supreme Court of the United States granting certiorari and leave to proceed in forma pauperis January 3, 1997 110

CHRONOLOGICAL LIST OF RELEVANT DOCKET ENTRIES

DATE	
1/2/92	Complaint for Search Warrant and Search Warrant filed.
1/24/92	Reissued Criminal Complaint filed.
2/4/92	Preliminary Hearing held.
2/4/92	Information filed.
3/25/92	Notice of Motion and Motion to Suppress Search – Search Warrant filed.
9/9/92	Evidentiary Hearing held.
10/7/92	Motion to Supplement Record filed.
10/12/92	Motion Hearing, Plea and Sentencing held.
10/12/92	Judgment of Conviction entered.

COMPLAINT FOR SEARCH WARRANT

STATE OF WISCONSIN	)	In the Circuit
	) ss.	Court of the
COUNTY OF DANE	)	County of Dane.

DETECTIVE RICHARD PHARO, being duly sworn, on oath complains to the said Court of the County of Dane, that on December 30, 1991, in the County of Dane, that there are now located and concealed in and upon certain premises and persons unknown within said premises, in the City of Madison in said Dane County, Wisconsin, and more particularly described as follows:

> Room 138 of the Ramada Inn Motel, located at 3841 E. Washington Avenue, which is further described as a multi-room motel. Room #138 has the white numerals "138" against a black background affixed to the entry door of that room.

certain things, to-wit:

> Cocaine base and all other instrumentalities including but not limited to scales and packaging materials. Books, records, receipts, notes and other papers relating to the distribution of controlled substances. Address or telephone books reflecting customers' names and price lists. U. S. currency, precious metals, jewelry or other documents evidencing money transactions. Documents tending to identify the residents or persons in control of said premises. Any and all firearms which may be upon said premises.

which things may constitute evidence of a crime, to-wit: Possession with Intent to Deliver a Controlled Substance, committed in violation of Section(s) 161.41(1m) of the

Wisconsin Statutes; and prayed that a Search Warrant be issued to search said premises and persons unknown within said premises for the property aforesaid. That the facts tending to establish grounds for issuing a Search Warrant are as follows:

*1) FACTS:

Your complainant is a detective with the City of Madison Police Department presently assigned to the Intra County Vice and Narcotics Unit commonly referred to as METRO which investigates the trafficking of narcotics and other dangerous drugs. While so assigned, your complainant has participated in hundreds of investigations involving violations of the Wisconsin Uniform Controlled Substances Act. Your complainant has received training in drug investigation techniques and the identification of controlled substances from the Wisconsin Department of Justice, the Federal Drug Enforcement Administration, chemists from the Wisconsin State Laboratory and from senior detectives of the Metro Narcotics Unit. Your complainant has participated in over two hundred investigations for controlled substance violations and has assisted in at least 100 search warrants. During the execution of said search warrants and during the involvement of the aforesaid drug investigations, your complainant has learned the following:

a. that individuals who derive their income or a large portion of their income from the sale of controlled substances commonly maintain on hand large amounts of U.S. currency in order to maintain and finance their ongoing narcotics business;

b. that it is common for drug traffickers to secret contraband, proceeds of drug sales, large amounts of currency, financial instruments and records of drug transactions in secure locations within their residence for ready access and to conceal those items from law enforcement authorities;

c. that drug traffickers commonly maintain address or telephone numbers in books or papers which reflect names, addresses and/or telephone numbers of their associates in the drug trafficking organization;

d. that drug traffickers commonly use scales to weigh controlled substances and also have on hand, packaging materials, including but not limited to plastic baggies or square pieces of cut paper;

e. that drug traffickers commonly maintain in their possession firearms at both their residence, place of distribution of controlled substances or vehicles used by drug traffickers in order to facilitate the distribution of controlled substances and to protect themselves from other drug traffickers or law enforcement officers. Your complainant has personally observed numerous firearms in the aforementioned places on numerous times during the execution of search warrants or during the course of drug investigations.

This complaint is based on information your complainant received from a citizen informant during the week of 12-22-91. Your complainant believes the information received from the citizen complainant to be truthful and reliable inasmuch as your complainant was able to verify a large portion of the information through independent means.

Your complainant learned from the citizen informant that there were a number of black males registered as guests at the Motel 6 motel located at 1754 Thierer Road, Madison, Wis. The citizen informant advised your complainant that there were at least four black males from the Detroit, Michigan area who were staying at the motel who were presently engaged in drug trafficking. Your complainant learned from the citizen informant that the four black males had been in the Madison area for one week previous to the week of 12-22-91. The citizen informant also advised your complainant that one of the black males was described as being in his 20's, approx. 5'9", and well over 200 lbs.

Your complainant states that your complainant personally learned the following information from the management at Motel 6 and from Police Officer Bill Murphy, who is presently assigned to the Metro Narcotics Unit, that since approx. 12-15-91, there were four black males staying in at least two different rooms at Motel 6. Your complainant learned that as of 12-27-91, there were still two rooms rented to these four black males. Your complainant also learned that since staying at the motel, the black males would frequently refuse maid service, would always pay in cash for the rooms and made numerous phone calls from the rooms and also received numerous phone calls into their rooms.

It is your complainant's training and experience that drug traffickers who use motel rooms as a base for their drug trafficking, conduct their business in the aforementioned manner.

Your complainant learned from Officer Murphy that on 12-28-91 Officer Murphy learned that the four black males had checked out of the motel and Officer Murphy removed from their room after departure, a box of clear plastic sandwich baggies. Your complainant knows that clear plastic sandwich baggies are used as a packaging material for cocaine base which is sold on the street.

Your complainant learned that one of the persons registered at the Motel 6 listed a name of STEINEY RICHARDS with an address 11415 Sorrello, Detroit, Michigan. Your complainant learned from Officer Murphy, who is presently assigned to the Metro Narcotics Unit, that Officer Murphy contacted the Detroit Police Department and learned that on 1-07-91, STEINEY RICHARDS, M/B, DOB 11-12-72, was arrested while in possession of 63 packets of cocaine. At the time of RICHARDS' arrest, RICHARDS used an address of 11415 Sorrento, Detroit, Michigan. Your complainant learned that the description given by RICHARDS at the time of his arrest, was listed as 5'9", 280 lbs.

Your complainant believes the information provided by the Detroit Police Department to be truthful and reliable inasmuch as the information was kept during the normal course of business as a police department and your complainant has relied on information from police departments in the past and always found the information to be truthful.

Your complainant believes the information provided by Police Officer Bill Murphy to be truthful and reliable as your complainant has relied on information provided by Officer Murphy previously and the information was

obtained while Officer Murphy was performing his duties as a sworn City of Madison police officer.

Your complainant believes the information provided by the management of Motel 6 to be truthful and reliable inasmuch as the information is kept as the normal course of business for the motel.

Your complainant advises that your complainant went to the Ramada Inn located at 3841 E. Washington Ave., Madison, Wis., and learned that STEINEY RICHARDS checked into their motel in the early morning hours of 12-28-91 and paid cash for room #138 through 1-04-92. Your complainant learned that at the time of registration, RICHARDS used an address of Laro 11415, Detroit. Your complainant learned while talking with management at the Ramada Inn that since checking in on 12-28-91, RICHARDS has made at least 51 out going phone calls from room #138.

Your complainant states that your complainant personally observed the Ramada Inn Motel located at 3841 E. Washington Ave., City of Madison, Wis. and further observed room #138 and advises that it is the same as described on the front page of the complaint and search warrant.

~~Your complainant request that a NO KNOCK search warrant be approved as your complainant has learned through training and experience that drug traffickers commonly have weapons in their possession while involved in drug trafficking.~~ [MAF]

WHEREFORE, complainant prays that a Search Warrant be issued to search said premises and persons

unknown within said premises, for the property aforesaid.

/s/ Det – Richard Pharo

Subscribed and sworn to before me
this 31 day of December, 1991.

/s/ Mark A. Frankel
Judge of Circuit Court, Branch 12

Your complainant further states that in your complainant experience, drug traffickers from out of state using motels as a base of operations, keep controlled substances in their rented rooms. RDP [MAF]

SEARCH WARRANT

STATE OF WISCONSIN	)	In the Circuit
	) ss.	Court of the
COUNTY OF DANE	)	County of Dane.

(Filed January 2, 1992)

THE STATE OF WISCONSIN, to the Sheriff, or any other peace officer for said County:

WHEREAS, Detective Richard Pharo had this day complained in writing to this Court of the County of Dane, upon oath, that on December 30, 1991, in the County of Dane, that there are now located and concealed in and upon certain premises and persons unknown within said premises, in the City of Madison, in said Dane County, Wisconsin, and more particularly described as follows:

> Room 138 of the Ramada Inn Motel, located at 3841 E. Washington Avenue, which is further described as a multi-room motel. Room #138 has the white numerals "138" against a black background affixed to the entry door of that room.

certain things, to-wit:

> Cocaine base and all other instrumentalities including but not limited to scales and packaging materials. Books, records, receipts, notes and other papers relating to the distribution of controlled substances. Address or telephone books reflecting customers' names and price lists. U. S. currency, precious metals, jewelry or other documents evidencing money transactions. Documents tending to identify the residents or persons in control of said premises. Any and all firearms which may be upon said premises.

which things may constitute evidence of a crime, to-wit: Possession of a Controlled Substance with Intent to Deliver, committed in violation of Section(s) 161.41(1m) of the Wisconsin Statutes; and prayed that a Search Warrant be issued to search said premises and persons unknown within said premises for the property aforesaid.

NOW, THEREFORE, in the name of the State of Wisconsin, you are commanded forthwith to enter said premises ~~without the compliance of the knock and announce rules so long as the circumstances described herein obtained up to entry into said premises exists~~ [MAF] and search the said premises and persons unknown within said premises for the property aforesaid, and return this Warrant within forty-eight hours, before the said Court.

WITNESS, the Honorable MARK A. FRANKEL, Judge of Circuit Court, Branch 12 Dane County, Wisconsin, this 31 day of December, 1991.

/s/ Mark A. Frankel
Judge

ENDORSEMENT

Received by me this 31 day of December, 1991, at 2:00 o'clock A.M.

/s/ Det Richard Pharo
~~(Sheriff)~~ (Peace Officer)

CIRCUIT COURT)
) ss.
COUNTY OF DANE)

RETURN OF OFFICER

Dated this 2 day of January, 1992

at Madison Wisconsin.

I hereby certify that by virtue of the within Warrant, I searched the within named premises and found the following:

See Attached List

and have the same now in my possession subject to the disposition of the Court.

/s/ Illegible
(Sheriff) ~~(Peace Officer)~~

1 M20191 Pacific Bell calling card to ERICKA DATES, no. 819-945-4802-2334, Badger Cab business card with names and phone nos., Motel 6 paperwork, misc. papers with names and phone nos., Dominos napkin with numeric notations. Found on the dresser top, south wall.
MPD Prop. Room

2 M20191 Photo ID card for TERRELL CARTER for McKenzie High School, Detroit. Found inside left pocket of blk coat.
MPD Prop. Room

3 M20191 One box of Flavor-lock sandwich baggies, piece of paper with numerous phone nos. Found on nightstand, north wall.
MPD Prop. Room

4 M20190 Plastic K-Mart bag containing the following items:

4A – white athletic sock
4A1 – empty plastic sandwich baggie
4A2 – baggie containing 4A3 and 4A4.
4A3 – knotted plastic baggie with approx. 24.3 grams of suspect cocaine base weighed w/baggie.
4A4 – knotted plastic baggie with 24.5 grams of suspect cocaine base weighed w/baggie.
4B – white athletic sock
4B1 – plastic baggie containing 4B2, 4B3, and 4B4.
4B2 – 23.8 grams of suspect cocaine base weighed w/baggie.
4B3 – 24.6 grams of suspect cocaine base weighed w/baggie.

4B4 – 21.6 grams of suspect cocaine base weighed w/baggie.
4C – one knotted plastic baggie containing numerous clear plastic zip loc gem packs containing suspect cocaine base weighing 7.5 grams with packaging.
4D – one knotted plastic baggie containing numerous clear plastic zip loc gem packs containing suspect cocaine base weighing 7.5 grams with packaging.
4E – one knotted plastic baggie containing numerous clear plastic zip loc gem packs containing suspect cocaine base weighing 7.6 grams with packaging.
4F – one knotted plastic baggie containing 30 clear plastic zip loc gem packs containing suspect cocaine base, total weight 7.5 grams with packaging.
All the above were found above ceiling tile in bathroom in Room 138.

Metro Locker 7

5 M20190 Plastic Ramada Inn bag containing Item 5A.

Metro Locker 7

✔5A M20191 $2,890 in U. S. currency, all folded in $100 increments, with the exception of $90. Located above ceiling tile in bathroom of Room 138.

Metro Locker 7

CIRCUIT COURT
STATE OF WISCONSIN DANE COUNTY

REISSUED
CRIMINAL COMPLAINT

STATE OF WISCONSIN, PLAINTIFF

VS.

87187
STEINEY J. RICHARDS DOB: 11/12/72

Sex/Race:	Male/Black	
Height/Weight:	5'9/260	9435 Grandville Road
Hair:	Black	Detroit, Michigan

DEFENDANT(S)

OFFENSES: POSSESSION OF A CONTROLLED SUBSTANCE (COCAINE BASE) WITH INTENT TO DELIVER
TAX STAMP VIOLATION

STATUTE(S) VIOLATED: 161.41(lm)(cm)4; 139.95(2)

COMPLAINING WITNESS:
Charles Flad

AGENCY & CASE NO:	COURT CASE NO.:
MAPD-METRO/574030	92 CF 124

THE ABOVE-NAMED COMPLAINING WITNESS BEING DULY SWORN SAYS THAT THE ABOVE-NAMED DEFENDANT IN THE COUNTY OF DANE, STATE OF WISCONSIN, DID, on or about December 31, 1991, at the City of Madison, knowingly possess a controlled substance, cocaine base, in an amount more than 40 grams, with intent to deliver same; contrary to Section

161.41(lm)(cm)4 of the Wisconsin Statutes; and upon conviction shall be fined not less than $25,000.00 nor more than $1,000,000.00 and shall be imprisoned for not less than ten (10) years nor more than thirty (30) years.

AND AS A SECOND AND SEPARATE OFFENSE THE ABOVE-NAMED DEFENDANT IN THE COUNTY OF DANE, STATE OF WISCONSIN, DID, on or about December 31, 1991, at the City of Madison, being a dealer, possess cocaine base that did not bear evidence that the tax under Section 139.88 of the Wisconsin Statutes has been paid; contrary to Section 139.95(2) of the Wisconsin Statutes; and upon conviction may be fined not more than $10,000 or imprisoned for not more than five (5) years or both.

**FACTS: Dane County Sheriff's Department Detective Jeffrey Teuscher reports that on December 31, 1991, he participated in the execution of a search warrant at Room 138 in the Ramada Inn, located at 3841 East Washington Avenue, in the city of Madison, Dane County, Wisconsin. Detective Teuscher reports that he prepared a report regarding items seized pursuant to the warrant and the testing and weighing of a number of these items, and a copy of this report is attached to and by reference incorporated in this complaint.

Detective Mary Ricksecker of the Madison Police Department reports that she participated in the execution of the above-described warrant and was stationed outside of the motel room at the time entry was made. Detective Ricksecker reports that an individual later identified with a Michigan driver's license as Steiney J. Richards, Jr. broke through the window of Room 138 and began running

away from the motel. Detective Ricksecker reports that Richards was subsequently apprehended by other officers.

Detective M. Tanya Molony of the Dane County Sheriff's Department reports that she participated in the execution of the above-described search warrant and as she entered the room she saw a person, later identified verbally as Jerel E. Dates, standing in the corner of the room.

Detective Richard Pharo of the Madison Police Department reports that he spoke to the management at the Ramada Inn and learned that Steiney Richards had checked into the motel on December 28, 1991, at approximately 2:00 a.m. and had paid for a room at the motel through January 4, 1992 in cash. The desk clerk also informed Detective Pharo that from December 28, 1991 through the evening of December 30, 1991, approximately 51 outgoing phone calls were made from the room. The clerk also informed Detective Pharo that two people were registered for the room. Detective Pharo reports that immediately after he and other officers announced that they were police officers, he heard breaking glass, which Detective Pharo later learned was caused by Richards jumping through the closed glass window in the room.

Detective Pharo reports that he obtained from the Dane County Sheriff's Department records inked finger and palm prints of the defendant, which were identified by said records as being those of Defendant Steiney J. Richards, and transported them to the Wisconsin State Crime laboratory where he turned them over to Anthony Spadafora.

Detective Teuscher reports that he transported the suspect controlled substance, identified in his report under Item #4, and the plastic Ramada Inn bag, identified as Item #5, to the Wisconsin State Crime Laboratory, where these items were assigned Wisconsin State Crime Laboratory Case Number M92-27.

Your complainant has viewed reports of laboratory findings prepared by Chemist Guang S. Zhang, a copy of which is attached to and by reference incorporated in this complaint. Your complainant has also reviewed a Wisconsin State Crime Laboratory report prepared by Anthony Spadafora, identified as a preliminary report, a copy of which is attached to and incorporated in this complaint.

Your complainant believes the information contained in said reports to be truthful and reliable because your complainant knows that Chemist Guang Zhang has testified as an expert in the field of the chemical and other identification of controlled substances in the courts of the state of Wisconsin, and that Anthony Spadafora has testified as an expert in the courts of the State of Wisconsin in the field of fingerprint identification and comparison.

**THIS COMPLAINT IS BASED ON the information and belief of your complainant, who is a Police Officer with the Madison Police Department, and relies on information provided by Dane County Sheriff's Department Detectives Jeffrey Teuscher and M. Tanya Molony, and City of Madison Detectives Richard Pharo and Mary Ricksecker, all of whom your complainant knows from prior experience to be truthful and reliable. Further, your complainant believes the information obtained from the desk clerk/management of the Ramada Inn to be truthful

and reliable because is [sic] was taken from records kept and maintained by the motel in the usual course of business.

SUBSCRIBED AND SWORN TO BEFORE ME AND APPROVED FOR FILING THIS 24th DAY OF JANUARY, 1992.

/s/ Illegible
DEPUTY/ASSISTANT
DISTRICT ATTORNEY

/s/ Det. Charles P. Flad
COMPLAINANT

CIRCUIT COURT
STATE OF WISCONSIN DANE COUNTY
BRANCH 1

STATE OF WISCONSIN,
Plaintiff,
-vs- Case No. 92 CF 124
STEINEY J. RICHARDS,
Defendant.

[10] • • •

JEFFREY A. TEUSCHER:
being first duly sworn,
on oath, testified as follows:

DIRECT EXAMINATION BY MS. SCHWAEMLE:

Q Could you state your full name, sir, and spell your last name?

A Jeffrey A. Teuscher, T-e-u-s-c-h-e-r.

Q And are you a detective with the Dane County Sheriff's Department?

A That is correct.

Q Were you working in that capacity, Detective Teuscher, on December 31st of 1991?

[11] A Yes, I was.

Q On that date, did you have occasion to participate in the execution of a search warrant at the Ramada Inn here in the city?

A Yes, I did.

Q Where is the Ramada located that you were at?

A It's the 3800 block of East Washington Avenue in the City of Madison, Dane County, Wisconsin.

Q Can you describe what occurred when you attempted to make entry to execute the warrant at that location?

A Myself and another police personnel entered the room and as we went through the door, I observed a black male subject just going through the window of the room into a courtyard.

Q The room where you executed the search warrant, is this one of the rooms that is held out for rental by the Ramada Inn?

A Yes, it is.

Q This black male that you saw go through the window, did you have occasion to see him again?

A Yes, I did.

Q Would you recognize him again if you saw him?

A Yes, I would.

Q Do you see him here today?

A Yes.

Q Could you tell us where he is?

[12] A It's Mr. Richards seated at defense table with the blue shirt on.

Q May the record reflect that this witness has identified the defendant?

THE COURT: It will.

MS. SCHWAEMLE:

Q Was the window open or closed when Mr. Richards went through it?

A Closed.

Q Did you locate anything in the room that you searched, the room that Mr. Richards jumped out of pursuant to your warrant?

A Yes, I did.

Q Can you describe, Detective Teuscher, what items you located?

A I found in the bathroom above a ceiling tile, a false ceiling tile, two plastic bags.

Q The two plastic bags, where were they located in relation to one another?

A Right next to one another.

Q And what was contained within these two plastic bags?

A One bag contained approximately $3,000 in U.S. currency, the other plastic bag contained a white athletic sock with two baggies of large chunks of cocaine base. It contained another white athletic sock.

[13] • • •

A There was another white athletic sock that contained three baggies of a large one-piece chunk of what appeared to be cocaine base. It also contained four baggies which contained numerous Zip-loc gem packs, clear in color, which also appeared to contain cocaine base.

Q When you describe this last baggie containing numerous Zip-loc or gem pack packages of cocaine base, can you tell us approximately how many there were?

A Yes, I opened one of them and found one of the bags to contain 30 of these Zip-loc gem pack baggies. I subsequently weighed that with the packaging material and weighed the other three baggies which contained the gem packs, all of them were similar in weight and size so I assume that there was approximately 30 baggies in each one of the four.

Q Detective Teuscher, do you have any training or experience as a narcotics investigator?

A Yes, I've been a detective assigned to the narcotics section for approximately twenty months now. I've assisted in the execution of at least 75 search warrants concerning [14] controlled substance violations. I've also assisted in over 300 investigations of controlled substance violations.

Q Based on that experience, do you have an opinion regarding the street value of cocaine base on or about December 31, 1991 in Dane County?

* * *

A Yes, the Zip-loc – the gem packs sell for approximately $20 apiece and it's been my experience that when we purchase these gem packs, there's around a 10th of a gram of cocaine base in them and so we're paying $20 for approximately a 10th of a gram. If you multiply that times the number of gem packs, you're going to have approximately $2300 to $2400 worth of cocaine base just in the gem packs. The larger packages I conservatively estimated them at a hundred dollars a gram. Realistically

when they're divided up, we end up paying approximately $200 a gram, but when I weighed the total weight of the larger packages, that was a conservative estimate at the time of a hundred dollars a gram.

Q With respect to the packages containing what appeared to you to be cocaine base, were there any markings or identifiers of any kind on the containers other than the athletic sock that may have had some kind of trademark on it?

A No, there was nothing visible. I also examined each of the [15] packages looking for a Wisconsin controlled substance tax stamp and was unable to locate a tax stamp on any of the packages of substance.

* * *

Q Did you locate anything that you seized from the room that was not secreted in the ceiling tiles?

A Yes, I did.

Can you describe what among those items that you recall that you seized?

A There was a box of sandwich baggies located on a night stand between the two beds. There was some papers that had numeric notations on with different names of people and some papers with names and phone numbers on.

Q The items that you seized and that you have described thus far, Detective, what did you do with them after you seized them?

A I sealed them as evidence and transported some of those items to the Wisconsin State Crime Lab.

Q Who did you turn them over to at the crime laboratory?

A I turned over the packages of controlled substance to Chemist Guang Zhang and turned over some plastic baggies or [16] plastic bags that the substance and currency was found in to Anthony Spadafora who works in the Identification Section of the Wisconsin State Crime Lab.

Q And were these items of evidence that you turned over assigned a case number by the crime laboratory?

A Yes, they were.

Q What number?

A I believe it was M9227.

Q In addition to the items that you seized pursuant to the search warrant, did you transport anything else to the crime laboratory, and in particular to Anthony Spadafora regarding this case?

A I transported a fingerprint card which had Mr. Richards' fingerprints on and another fingerprint card which had Mr. Dates' fingerprints on.

Q The fingerprint card regarding Mr. Richards, did that appear to bear his signature?

A Yes, it did.

Q And where did you obtain that fingerprint card from?

A From the Dane County Jail.

Q And was that taken from records kept and maintained by the Dane County Sheriff's Department in the course of its duties – the fingerprint card?

A The fingerprint card that I transported to the crime lab was an additional fingerprint card that was requested to be [17] taken from the suspects. It expedites things for the personnel at the crime lab to have those there and at the same time our Records Section there will be another card that went to records.

Q The fingerprint card that you transported with Mr. Richards' name on it, was that a record that is generally kept and maintained by the department in the course of its official duties?

A Yes.

* * *

Q While any of the items that you've described were in your possession, Detective Teuscher, did you alter them in any way?

A No, I did not.

MS. SCHWAEMLE: Your Honor, I have had marked as Exhibits 1 and 2 original Wisconsin State Crime Laboratory reports.

MR. BERMAN: I have them.

MS. SCHWAEMLE: They're the same ones that are attached to the complaints and I would ask they be received.

[18] * * *

THE COURT: Exhibit 1 is received. Exhibit 2 is also received. At least my interpretation of the testimony

is that when they are going to do fingerprinting, it is standard procedure in the ordinary course of business to take a second card for administrative reasons. They could have taken either card out obviously, but I think it fits within the hearsay exception so I'll receive Exhibit 2 also. Any other questions?

MS. SCHWAEMLE:

Q What time of day, Detective Teuscher, did you and the other officers make entry into this motel room?

A At approximately 3:40 a.m.

Q And do you recall how Mr. Richards was dressed at the time that he went through the window?

A I recall he didn't have a shirt on.

Q In executing this warrant, did you observe any signs of [19] occupancy of this room?

A There was clothing in the hotel room, some luggage or carrier bags, there was jackets, there were the keys to the room lying inside, the hotel keys.

Q Lying inside where?

A I believe they were a lying on one of the dresser tops.

Q In addition to the two plastic baggies that you described containing currency and cocaine base, was there anything else secreted with those items above the ceiling tile?

A No.

Q Thank you, Detective.

THE COURT: Mr. Berman.

CROSS EXAMINATION BY MR. BERMAN:

Q Detective, were you the first one at the door of the motel room when the search was executed?

A I was not.

Q You were not. Do you recall who that was, who was first at the door?

A Contact was first made by Detective Pharo.

Q And so Detective Pharo was the first one to go through the door, is that your recollection?

A No.

Q Who was the first one?

A The first person to go through the door I believe was Officer Pereguoy.

[20] Q You indicated that you went to this motel room No. 138, correct?

A That is correct.

Q And you attempted to make entry. Was there an instance where you were unable to make entry to the motel room?

A Detective Pharo had made contact with Mr. Richards and Mr. Richards subsequently slammed the door shut.

Q All right. How was it that Detective Pharo made contact with Mr. Richards?

A Detective Pharo was attempting to get Mr. Richards to open the door willingly. He was using a ruse as a maintenance person.

Q So Detective Pharo went to the door and used this ruse saying he was a maintenance person?

A Correct.

Q And he said words to the effect open the door, maintenance man, something like that?

A I don't know what his words were exactly.

Q Were you there?

A I was in the room across the hall.

[21] * * *

Q And then after the door was closed on Detective Pharo, did he then effect entry through use of force?

A At that point I believe he shouted "police officers, open the door," at which time I think he attempted to kick it.

Q Well, were you in the room across the hall at the time?

A Yes.

Q And was the door to the room across the hall closed when Detective Pharo was effecting entry to Room 138?

A Yes.

Q So you didn't actually observe Detective Pharo get the door open in whatever fashion to Room 138?

A No, I observed it because I was watching through the security peephole.

Q Then you said you believed that he – you said you believe that he somehow got the door open as a maintenance man, correct?

A Correct, and the door was slammed shu[illegible] which point he yelled "police officers," and I think he kicked the door, but it didn't budge. We at that point came out – were coming out of the room across the hall at which time Officer Pereguoy kicked the door and it opened and we entered.

Q There was another individual in the room when you got into the room, correct?

A That's correct.

[22] * * *

Q How was Mr. Pharo dressed?

A He had on a Ramada Inn shirt.

* * *

Q Now, there's another individual in the room when you got in, correct?

A Correct.

Q That's a Mr. Dates?

A That's correct.

Q Jerel Dates?

A Correct.

Q Did you go through any papers, forms of identification, documents, that sort of thing that you found in the room?

A Yes.

Q And you found items relating to an Erica Dates, did you not?

A Yes.

Q In fact, a Pacific Bell calling card relating to Erica Dates?

[23] A Correct.

Q You also found an ID card for a Turell Carter in a coat in the room, correct?

A Correct.

Q Now, you indicated that you had to search for items listed in the search warrant, correct?

A Correct.

Q And the items that you suspected as being controlled substance were not out in the open, were they?

A No, they are not.

Q And they were not in plain view, were they?

A No.

Q You indicated they were found above a false ceiling tile. By false ceiling tile, that's one the Ramada Inn had installed, right?

A Correct.

Q That wasn't something that someone had come in later and put in some false ceiling tile in the bathroom; it

appears that's the way the room had been furnished, correct?

A Correct.

Q Did you undertake a search of Steiney Richards' person?

A I did not.

Q Were you present when that was done?

A I don't believe so.

Q You're not aware, are you, of any large amounts of currency [24] being found on Steiney Richards' person, correct?

* * *

A Based on observations I do not know.

* * *

Q I'm sorry, you do not know?

A No.

Q In order to get to this substance which you believe to be cocaine base above the ceiling tile, did you have to stand up on something and remove the ceiling tile and look in there for it?

A I'm quite short so I had to stand on top of the toilet and just lift up one of the tiles of the suspended ceiling and it was right there.

Q Would a person walking into the bathroom just ordinarily and using the bathroom to wash up, take a shower or whatever would not see these gem packs and the currency, correct?

A No.

Q Did you take a look at the pieces of paper with notations [25] that were found in Room 138?

A Yes.

Q And what did you believe them to be?

A Well, there were three names on one of the – on a napkin. One was Steve, the other one was Ro, and the other one I don't recall the name, but they had numeric notations at the end of them and then were crossed off like a balance sheet; and one of the notations was for a hundred, one of the other ones I believe was for, to the best of my recollection, 1700 and one of them was 890 and I believe those to be balance sheets because if you add up the totals of those amounts, they come out to, I don't know, about 2690, I believe, and if you look at the money that was found above the ceiling tile, we find 2890. Now, the unusual correlation between that is you have somebody on a sheet that has $890 and then you look at the money above the ceiling tile and you have money ending – you have $2890 or something close to that, so there's a correlation there. I believe that the monies on the napkin, or the amounts on the napkin were monies brought to the persons in that room and they were scratched off because that was the payment for cocaine base that was fronted out to them.

Q Now, you indicated you believe that it signified monies brought to the persons in that room. Did you find any clothing, personal effects of Mr. Richards in Room 138?

[26] A I don't recall any identification, but there were jacket – there was a jacket, other items of clothing; whether they were Mr. Richards' or not, I'm not sure.

Q How many people appeared to be residing in that room based upon your execution of the search warrant?

A Two.

Q I take it you didn't find it unusual that Mr. Richards was not wearing a shirt at 3:40 in the morning?

* * *

Q Did you perform any further investigation with regard to any phone numbers that you found in the room?

* * *

A I didn't discover any information as to the phone numbers.

Q Aside from the suspected controlled substances found in the hiding place above the ceiling tile, I take it you didn't find any controlled substances anywhere else in Room 138, true?

A True.

* * *

CIRCUIT COURT
STATE OF WISCONSIN DANE COUNTY
BRANCH 1

STATE OF WISCONSIN,

Plaintiff,

-vs-

STEINEY J. RICHARDS,

Defendants.

INFORMATION

Case No. 92 CF 124

(Filed February 4, 1992)

I, the undersigned, Assistant District Attorney for said Dane County, Wisconsin, hereby inform the said court that STEINEY J. RICHARDS, at the City of Madison, in said County, on December 31, 1991, against the peace and dignity of the State of Wisconsin, did, knowingly possess a controlled substance, cocaine base, in an amount more than 40 grams, with intent to deliver same; contrary to Section 161.41(1m)(cm)4 of the Wisconsin Statutes; and upon conviction shall be fined not less than $25,000.00 nor more than $1,000,000.00 and shall be imprisoned for not less than ten (10) years nor more than thirty (30) years.

AND AS A SECOND AND SEPARATE OFFENSE THE ABOVE-NAMED DEFENDANT IN THE COUNTY OF DANE, STATE OF WISCONSIN, DID, on or about December 31, 1991, at the City of Madison, being a dealer, possess cocaine base that did not bear evidence that the tax under Section 139.88 of the Wisconsin Statutes has been paid; contrary to Section 139.95(2) of the Wisconsin Statutes; and upon conviction may be fined not more than

$10,000 or imprisoned for not more than five (5) years or both.

DATE February 4, 1992 /s/ Judy Schwaemle
~~Deputy~~/Assistant
District Attorney

CIRCUIT COURT
STATE OF WISCONSIN DANE COUNTY
BRANCH 1

STATE OF WISCONSIN

Plaintiff,

vs. Case No. 92-CF-124

STEINEY J. RICHARDS (Filed 3-25-92)

Defendant.

NOTICE OF MOTION AND MOTION
TO SUPPRESS-SEARCH WARRANT

TO: Judy Schwaemle
Assistant District Attorney
210 Martin Luther King Jr., Blvd.
Madison, WI 53709

PLEASE TAKE NOTICE that Steiney J. Richards, by his attorneys, Giesen & Berman, S.C. will move the Court at a time and date to be set, for an Order suppressing all evidence derived directly or indirectly from the execution of a search warrant on room 138 of the Ramada Inn Motel located at 3841 East Washington Avenue in Madison, Wisconsin, a copy of which warrant is attached to this Motion as Exhibit I, on the ground that the complaint for search warrant, a copy of which is also attached as part of Exhibit I, fails to set forth sufficient facts to establish probable cause that the items sought would be in the place to be searched, and further on the basis that the law enforcement agents executing the warrant failed to sufficiently identify themselves and their purpose, and allow

time for the door to the room to be opened, and thus the search warrant and the execution of that search warrant were in violation of Steiney J. Richard's rights under the Fourth Amendment to the United States Constitution, Article I, Section 11 of the Wisconsin Constitution, and the Wisconsin Supreme Court's holding in *Morales v. State*, 44 Wis. 2d 96, 106 (1969).

And for such other and further relief as the court deems just and equitable in the premises.

Steiney J. Richards respectfully requests an evidentiary hearing on this Motion.

Dated and signed this 24th day of March, 1992.

/s/ Morris D. Berman
Morris D. Berman
Giesen & Berman, S.C.
Attorneys for Steiney J. Richards
14 South Broom Street
P.O. Box 909
Madison, WI 53701
(608) 255-8200

CIRCUIT COURT
STATE OF WISCONSIN DANE COUNTY
BRANCH 1

STATE OF WISCONSIN, Plaintiff,	:	
-vs-	:	Case No. 92 CF 124
STEINEY J. RICHARDS, Defendant.	:	

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[14]* * * *

RICHARD PHARO

called as a witness, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION BY MS. SCHWAEMLE:

Q Could you state your full name, please, and spell your last?

A Richard Pharo. The last name is spelled P-h-a-r-o.

Q And you are a detective with the City of Madison Police Department?

A I am.

Q How long have you been a law enforcement officer?

A A little over 22 years.

[15] Q Detective Pharo, were you working in that capacity at approximately 3:40 a.m. on December 31st of 1991?

A Yes, ma'am.

Q At that time did you and other officers participate in the execution of a search warrant at Room 138 at the Ramada Inn?

A I did.

* * *

BY MS. SCHWAEMLE:

Q What happened when you tried to get into the room?

A I went to the room, knocked on the door. The door opened. I noticed that there was a black male on the other side of the door.

At that time, the door was open approximately an inch and a half. When the black male was looking at me at first, he then looked over my right shoulder and there was an expression on his face that is – it's hard to describe, but the expression led me to believe that he [16] probably saw –

* * *

A When the black male had the door partially opened and looked over my right shoulder, approximately three to four feet away was a police officer in full military uniform, and from the expression on his face, which I can only describe as surprise, I started with my hand on the doorknob, was going to start to go in, and the door got slammed.

The length of time from when the door was opened to where the black male inside looked at me and then

looked over my shoulder and shut the door was maybe four to five seconds, if that.

Once the door was shut, I tried the doorknob, and I [17] believe I heard the door lock or the door latch or door lock being locked, and at that time we announced ourselves as police officers.

The door was kicked at least twice, and after the door was kicked, it didn't move. There was another officer that ran from across the hall and used his shoulder to force the door open. As the door opened, I heard glass breaking.

Q How many police officers are standing outside the door with you when the door is opened?

A To my right there were at least three police officers, one of which was in uniform. The other officers were in plain clothes. And to my left, there were at least two officers in plain clothes. Directly across the hall from Room 138 we had obtained another room from the management.

Q Were those –

A And there were at least three people, but I believe that door was closed when I made initial contact at Room 138.

Q When you knocked on the door, Detective Pharo, to Room 138 as you've indicated, did you say anything?

A Yes.

Q What did you say?

A Someone inside asked who was there, and I advised I was the maintenance man.

[18] Q And how were you clothed at that time?

A At that time, I think I had a pair of jeans on, and I had obtained from the management of the motel a dark blue shirt, and in the pocket area was the Ramada Inn logo, I believe.

Q So you were dressed as a maintenance man?

A Yes, ma'am.

Q How far away was the uniformed officer from you?

A Three to four feet.

Q And was this uniformed officer over your right shoulder?

A Yes, ma'am.

Q In the direction that the person who answered the door was looking?

A Yes.

Q How many times were the words "police officer" uttered before the door was eventually kicked in or shouldered in?

A At least twice, because I said it once, and I heard someone else yell it, and it may have been yelled after that, but I distinctly remember twice.

Q And did the door open at any time prior to being shouldered in, as you've indicated?

A No.

Q Would you recognize the person who answered the door, or did you recognize the person who answered the door for [19] the four to five seconds before it was slammed shut?

A I don't recall if I knew who it was at the time the door was cracked open or not.

Q But you were able to see – or were you able to see whether or not it was a black male?

A Yes, ma'am.

Q Prior to hearing the door lock as you've indicated, did you make any effort to open the door or gain entry into the door after it was slammed shut?

A Yes. I turned the doorknob and used some force with my arm to – as I was turning the doorknob, to try and swing the door open quickly.

Well, the door didn't move then, and I think it was at that time just as I grabbed the doorknob is when I heard the dead bolt go.

Q How soon after the door was slammed shut, Detective Pharo, did you or anyone else utter or yell as you've indicated "police officers?"

A Two or three seconds.

Q Thank you, detective. That's all I have.

THE COURT: Cross-examine.

CROSS EXAMINATION BY MR. BERMAN:

Q Detective Pharo, you were the affiant for the search warrant, correct?

A Yes, sir.

[20] Q And you applied for what's known as a no knock warrant, true?

A Yes.

Q And that request for no knock warrant was not granted by Judge Frankel, correct?

A Correct.

Q You went to the door of Room 138 posing as a maintenance man, correct?

A Yes.

Q And you were dressed as a maintenance man, correct?

A I had a Ramada Inn shirt on.

Q So you weren't dressed in uniform, correct?

A That's correct.

Q And when you went to the door, how did you announce yourself, when you went to the door of the Ramada Inn?

A I knocked on the door, and someone within asked who it was, and I stated I was the maintenance man.

Q And when the door was opened, it was opened for an inch and a half, correct?

A About an inch and a half, yes.

Q And when the door was opened, you again said that you were the maintenance man, correct?

A I don't recall if there was an exchange of words at that time. There was a peephole in the door, and that's when I stood in front of the door and knocked on it. After [21] the door was opened, I don't recall what the conversation was, if there was conversation.

Q When the door was opened for the inch and a half, you didn't display your badge or any other identification as a police officer, did you?

A No.

Q When the door was opened for the inch and a half that you testified about, you didn't identify yourself as a police officer, did you?

A No.

Q And at no time before the door was closed did anybody ever identify himself as a police officer, correct?

A No, I can't say that because there was a uniformed officer standing approximately three feet away from me, and the door being opened as it was, and the person standing over my shoulder –

* * *

[22] Q Before the door was closed, you did not say the words "police officer," correct?

A Correct.

Q And you believe you heard the words "police officer" once or perhaps twice before entry by force was made to the room, correct?

A I know I heard it, 'cause I announced it myself, and I heard someone else announce it. After that it may have been announced.

Q So what you said was "police officer."

A Yes.

Q After the door was closed on you the first time – you said it was opened for an inch and a half and then closed, correct?

A Yes.

Q After the door was closed, you never knocked on the door and said you were a police officer with a search warrant, did you?

A No, I didn't knock. I just hollered "police officer."

Q And two to three seconds after you said the words "police officer," you tried to open the door, correct?

A I was probably trying to open the door when I was doing that, and that's when I tried the doorknob and the door [23] didn't work.

Q And seconds after that, you started trying to kick the door open, correct?

A I kicked it once, and someone else bigger than me may have kicked it, and then someone else came from across the hall and broke the doorjamb to gain entry, yes.

Q But the kicking of the door happened a matter of seconds after the door was closed on you, correct?

A Yes, after I yelled "police officer," then we started the kicking, and there wasn't any response from inside verbally or opening the door.

* * *

[24] STEINEY J. RICHARDS

called as a witness, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION BY MR. BERMAN:

Q Will you state your name, both first and last name, and spell it for the reporter, please?

A My name is Steiney Richards, S-t-e-i-n-e-y, Richards.

Q How old are you, Mr. Richards?

A I'm 19 years old.

Q How far have you gone in school?

A This is my senior – '91 would have been my senior year. I would have graduated in January – in June of '92. I would have graduated in June of '92.

Q Mr. Richards, I want to draw your attention to December 31st of 1991. At that time were you residing in Room 138 at the Ramada Inn on East Washington Avenue in Madison?

A Yes.

Q Drawing your attention, then, to the early morning hours on that date, did someone knock on the door?

A Yes.

[25] Q After someone knocked on the door, did you then – what did you then do?

A I asked, "Who is it?" They said it was the maintenance man.

Q Did you look through any peephole or anything to try and see who it was?

A Yes, it's a peephole in the center of the door. I looked through that.

Q And could you see anybody out there?

A No, it was covered.

Q What did you do after that?

A I asked who was it again. They said maintenance man. I said, "Who?" They say, "Maintenance man." There's a chain on the door – there's a chain on the door, so I'm opening the door to look to see who is it, and he – Detective Pharo, I assume – hit the door trying to push it in, so I slammed the door back.

Q When you opened the door and saw Detective Pharo, how was he dressed?

A He had on a Ramada Inn shirt or jacket or something, but he wasn't dressed like a police.

Q Did he ever display to you when he was posing as a maintenance man that morning any badge?

A No.

Q When you looked out the door and saw Detective Pharo [26] dressed in a Ramada Inn shirt, did you see any police officers in uniform?

A I seen no one but Detective Pharo.

Q Was the door wide open when you opened it, or did you just open it a little bit?

A No, it's a chain that would let it only open so far. I didn't really get it open far enough for the chain. I was opening it a little bit. I didn't even get a chance to really get a good look around through the door before that Detective Pharo tried to force in.

Q What happened next?

A When I slammed the door, I ran to the window. I was looking out the window, and Jerel was in the corner by the table, and they were still hitting the door. No one said it was the police. They were still hitting the door. At that time me and Jerel looked at each other and were asking, "What are we going to do?"

By that time, they still hitting the door, so the conclusion was to get out the room. So I jumped out the window. Jerel never has time to make it around to the window. When I make it out the window, I mean, the officer yelled, "Police, freeze," and I stop.

Q Was that the first time you heard anyone ever say the word "police?"

A That was the first time.

[27] Q Did anyone ever knock on the door and say they were police, this is a search warrant?

A No.

Q Did anyone ever say that evening before entering the room that they had a – that they were police with a search warrant to execute on the room?

A No.

Q Anyone say anything about having a search warrant to execute on the room before they kicked the door open?

A No.

* * *

THE COURT: Cross-examine.

MS. SCHWAEMLE: I have nothing.

THE COURT: You can step down, Mr. Richards. Thank you for your testimony. Any further witnesses, Mr. Berman?

MR. BERMAN: No, sir.

THE COURT: Argument?

MS. SCHWAEMLE: Judge, there is a recent case that is essentially directly on point here. It's *State of Wisconsin versus Moss*, M-o-s-s. It's a Court of Appeals decision from January of this year that is published at 166 Wis.2d 73.

In that case, police with a search warrant went to a residence, knocked on the door, and the police officer [28] executing the warrant said "Pizza." The door was opened partially, and at that point the officer executing the warrant did announce himself as a police officer with a

search warrant, and the door was slammed shut, or at least it was attempted to be slammed shut, and that officer got his foot in the door, basically, so that it couldn't be slammed shut, and there was then a forced entry into that residence.

What the Court talks about in terms of the announcement rule, essentially, is that – I'm just going to read it to you, frankly, and I'm reading from 737, page 737.

"Although officers used a ruse to induce the person to open the door, they did not attempt to enter until they had identified themselves orally and visually and announced their purpose. When they did so, Moss began to close the door on them. Their forceful entry was in response to Moss's apparent intent to block them.

It is undisputed that officers are entitled to make a reasonable forcible entry after announcing their presence and purpose. Although the entry in this case occurred shortly after their announcement, Moss" – that was the defendant in that case – "already had opened the door, was aware of their presence and purpose, and had shown his intent to impede them."

[29] What we have here is Detective Pharo knocks on the door and gets the door opened by ruse, just like the pizza man in *Moss* did. He says, "I'm a maintenance man." The door is opened. What Detective Pharo sees is a person who answers that door who recognizes the uniform over his shoulder.

Detective Pharo says there is a look of surprise on his face. "There is a uniform right over my shoulder." What Detective Pharo believes is that the person who answered

this door sees that they are police officers, and in fact, that is consistent with what the person does because the door is slammed shut and locked at that point.

If in fact – if you want to believe Mr. Richards, he's locking the door on one person who is standing outside the door who is wearing a Ramada Inn uniform. Why is he locking the door? I submit it's because what's going on here is that there are in fact six people, as Detective Pharo testified, standing with him outside that door, and when the door is opened, Mr. Richards sees that there are six people standing there, it's not maintenance, and one of those people has got a police uniform on, and then the door is slammed.

The bottom line is that entry is not made into this – into Room 138 until they have announced at least [30] three times, by my recollection of the testimony – once by Detective Pharo, twice by other people – they don't make entry until they have yelled "police officers" three times. And that's the bottom line in the *Moss* case that the announcement rule applies to gaining entry.

You don't have to announce you're a police officer to get somebody to answer the door. You don't have to do any of those things, but before you cross the threshold, you have to say who you are and what you're up to. And that Detective Pharo and his companions complied with in this case.

I think this defendant, like the defendant in *Moss*, demonstrated a clear intention to resist their efforts to open the door. Not only was the door slammed shut. It was locked. And after repeated attempts to kick it in, it was not opened. It was never opened until it was forcibly

opened, and at that point, Mr. Richards is on his way out the window.

That door was not going to be opened. The officers had every right to forcibly enter, and before they forcibly entered, they announced themselves as police officers by yelling it. Whether or not Mr. Richards heard it – he testifies he doesn't hear it. Whether or not you believe that I suppose is up to you, but Detective Pharo testified that it was yelled repeatedly [31] at 3:40 in the morning when they're kicking on the door.

I think these officers have complied with the knock and announce rule and that the motion should be denied.

THE COURT: Mr. Berman.

MR. BERMAN: Your Honor, in my motion, I cited the Wisconsin Supreme Court case of *State versus Morales*. To my knowledge, that is still good law. Ms. Schwaemle has not indicated that that has been overruled by any case, including *Moss*.

I don't believe *Moss* really says a whole lot that's new. Certainly, the rule about being able to get into a premises by means of a ruse has been around for a long time.

But in any event, in *State versus Morales*, which is found at 44 Wis.2d, page 96, the Wisconsin Supreme Court held that police must identify themselves and their purpose and, except under special circumstances, allow time for the door to be opened in executing a search warrant.

That principle is repeated in many federal cases, and in fact, it's codified in Title 18 of the United States Code in Section 3109.

In this case, the evidence, even accepting Detective Pharo's testimony, is that the purpose was never announced; that at best, police said a couple of [32] times "police," and not that they had a search warrant.

In this case the testimony is uncontroverted that there was no knock by the police who said that they were police in announcing their purpose. There was no adequate opportunity for the occupants of the room to open the door. The only knock was by Detective Pharo when he was posing as a maintenance man.

Detective Pharo in that guise was refused admittance, and Mr. Richards was perfectly within his rights to refuse admission to a maintenance man. And I don't know – I don't think it's unusual at all that someone wouldn't want a maintenance man coming in at 3:40 in the morning.

So this is not a case like *Moss*, and just from the recitation of facts by Ms. Schwaemle, I think there are many facts distinguishing the cases. In *Moss*, before attempting to get in, the police did announce themselves as police and then the door was slammed shut. In this instance, the door was closed on the purported maintenance man who turned out to be Detective Pharo.

In *Moss*, according to Ms. Schwaemle's recitation of the case, the police announced their purpose. In this case their purpose was never announced, and hence, the rule in *Morales* was violated.

Ms. Schwaemle indicated the rule to be that the [33] police have to announce who you are and what you're up to, and in that case, this didn't occur. This is a case where the police did not comply with the knock and announce rule, and under the authority of *Morales*, the motion should be granted.

I guess I have one other point, your Honor. The assumption or the testimony that Mr. Richards must have seen uniformed officers standing out in the hall simply flies in the face of the physical evidence. According to the testimony, the door was opened an inch and a half.

Looking out through an inch and a half opening between the doorjamb and the door, a person is not going to see what's going on in the rest of the hallway, and police are not going to want to be in the field of vision because they would then lose the element of surprise.

* * *

THE COURT: I think to some extent the issues in this case turn on a number of other cases, and one is, as cited in *Moss, United States versus Covington,* which approves the use of ruse to enter a premises, as well as the *Cleveland* case in Wisconsin.

Hopefully, by use of a ruse, contact can be made with the occupants of the premises to be searched, at which time the announcement can be made under circumstances which then don't require the use of [34] forcible entry. And as is stated in *Covington,* if the ruse is unsuccessful, i.e., peaceful entry is not gained, then the police have the alternative of complying with the appropriate announcement requirement.

Now, the other case that I think is somewhat instructive is *State versus Meier,* 60 Wis.2d 452. In that case the officers did have a search warrant. They knocked on the door, and in that situation, the officers pushed the door open when the defendant had only opened it two inches and put the defendant under – or the occupant under restraints before showing him the warrant. The Court held in that case that the officers acted legally under those circumstances.

Here, what you are asking me to consider is something which I don't know if it's appropriate to consider. To some extent, the issue turns on what Detective Pharo confronted in the execution of the search warrant and what he could reasonably believe under the circumstances.

Mr. Richards' testimony, to some degree, is self-serving, and to another degree, it lacks some credibility due to the fact that he bailed out the window while all of this is going on would lead someone of a suspicious nature to beleive [sic] that maybe he did not want Detective Pharo, the maintenance man, to come in because [35] he was aware that accompanying Detective Pharo, even if he was the maintenance man, was a uniformed police officer.

I think that's a fair inference to draw from – or presumption, even, to draw from the facts in this case. It's three o'clock in the morning, or thereabouts. There is a knock on the door by this individual who says he's a maintenance man. There are a number of other people standing in the hall, including the uniformed police officer, at which time, albeit the door was only open an inch and a half, but Officer Pharo, Detective Pharo observed

an expression, if you will, on the defendant's face, that the door slammed shut, the dead bolt was engaged, that at that point in time he announced who he was. He was not in fact the maintenance man. He was a police officer. And he attempted entry.

That is basically the situation in *Moss*, and they did identify themselves, albeit that the identification and the forced entry were close to each other.

The object of the search warrant is to search a premises for controlled substances. I think the Court also is permitted to draw an inference that those types of materials are easily disposable with one flush of a toilet; that under those circumstances, if Detective Pharo was searching for stolen television sets, that [36] might enter into the consideration. But the warrant here was for controlled substances, which everybody knows are easily disposable. For him to stand around in the hall forever that night, I think one could be critical of that type of conduct under the circumstances.

I think based on – I know based on the evidence that I've received that there was an attempted ruse, which did not work, which required the officer to announce. My understanding of the evidence is that he made his announcement before crossing the threshold. There is no evidence that he did not make that – that he allowed at least some opportunity for Mr. Richards to open the door, but based on Mr. Richards' own testimony, he was too busy being in the corner and then out the window.

So under the circumstances, I believe the conduct of the officer was reasonable, the execution of the search

warrant was legal, and the motion is dismissed – or denied.

* * *

CIRCUIT COURT
STATE OF WISCONSIN DANE COUNTY
BRANCH 1

STATE OF WISCONSIN, Plaintiff,	:	
-vs-	:	
STEINEY J. RICHARDS, Defendant.	:	Case No. 92-CF 124

MOTION TO SUPPLEMENT RECORD

NOW COMES the State by Assistant District attorney Judy Schwaemle and hereby moves the court to reopen testimony of the evidentiary hearing held on September 2, 1992, on defendant's Motion to Suppress – Search Warrant.

As grounds for this motion, the State maintains that the record made at the hearing is incomplete, inasmuch as officers executing the warrant were not questioned about whether or not officers announced their purpose prior to entry.

As further grounds the State incorporates the attached affidavit of Detective Richard Pharo.

Dated at Madison, Wisconsin, this 5th day of October, 1992.

Respectfully Submitted:

/s/ _____
Judy Schwaemle
Assistant District Attorney
Dane County, Wisconsin

CIRCUIT COURT
STATE OF WISCONSIN DANE COUNTY
BRANCH 1

STATE OF WISCONSIN, Plaintiff,	:	AFFIDAVIT
-vs-	:	
STEINEY J. RICHARDS, Defendant.	:	Case No. 92-CF 124

STATE OF WISCONSIN)
) ss
COUNTY OF DANE)

Richard Pharo, being first duly sworn on oath, states the following:

(1) That on December 31, 1991, prior to entry by officers to room 138 at the Ramada Inn, he heard an officer shout, "search warrant."

(2) Detective Pharo further reports that he spoke with Detective Jeff Teuscher, who informed Detective Pharo that Detective Teuscher was in fact the person who shouted, "search warrant," as police were forcing open the door to room 138.

(3) Detective Pharo states that he believes Detective Teuscher to be truthful and reliable because Detective

Pharo has relied on him on numerous previous occasions and always found him to be so.

/s/ _____
Richard Pharo

Subscribed and sworn to before me
this _____ day of October, 1992.

/s/ _____
Notary Public, Dane County, Wisconsin
My commission: _____

CIRCUIT COURT
STATE OF WISCONSIN DANE COUNTY
BRANCH 1

STATE OF WISCONSIN, Plaintiff,	:	
-vs-	:	
STEINEY J. RICHARDS, Defendant.	:	Case No. 92-CF 124

* * *

[3] THE COURT: This matter was set for jury trial today. It also is set for hearing on the State's motion to supplement record. Why don't we deal with that motion first. Ms. Schwaemle, to your motion.

MS. SCHWAEMLE: Judge, in addition to the motion that I filed, I sent to the court and copied Mr. Berman a letter somewhat – explaining somewhat further the basis for my motion. Briefly, Judge –

THE COURT: I remember reading it. I can't remember what I did with it. Here it is. Go ahead.

MS. SCHWAEMLE: Briefly, the suppression hearing in this case that was held in early September. I appeared at that time, frankly, in somewhat haste, and I failed to ask Dick Pharo what I think is a very relevant and pertinent question to make the record complete on the manner in which that search warrant was executed, and it is entirely due to my oversight in making that record. Indeed, it came to my attention as soon as the evidence was closed and I was arguing to the court and

reviewing [4] the case on which I relied at that time. It jumped out at me immediately, and, as soon as we were out of the courtroom, I asked Dick Pharo, did anyone announce – prior to entry into that room did anybody say anything about what they were doing there, and he told me, in fact, that he had heard at least one person, if not more, shout "search warrant," and it is simply by my omission that I failed to ask that question.

I ask this court to reopen that record, because the record is silent on that matter and because it's my belief that records are made in the lower court and that, when those decisions are appealed to a higher court, those decisions should be based on what, in fact, occurred – should be based on the truth. The truth is, is [sic] I understand it, that the police did announce their purpose for entry into that residence, and, because that is the truth, I ask this court to reopen the record so that truth can be made of record and so that a higher court looking at what occurred can make a decision based on the truth.

THE COURT: Mr. Berman.

MR. BERMAN: Judge, I also forwarded a letter to the court the day after I received Ms. Schwaemle's submissions, and we do strenuously oppose reopening the record at this point. I think the letter sets out my [5] grounds rather fully. Judge, our motion very, very explicitly set forth the grounds that we were challenging the execution of the search warrant at the room at the Ramada Inn. The motion expressly set out, as one of those grounds, the fact that the executing law enforcement agents, and I'm quoting now, "failed to sufficiently identify themselves and their purpose." The motion also

expressly cited the *Morales* case, which has as its holding the proposition that, when search warrants are executed, law enforcement agents must announce both their identity and their purpose, absent exceptional circumstances. The hearing itself provided ample opportunity for the one State's witness who testified to – testified as to what others may or may not have said. He was asked open-ended questions on direct, and he did not say anything about a search warrant being the purpose of the law enforcement agents on December 31st. Moreover, Mr. Richards was called to the stand. He was asked point-blank whether anyone said anything about a search warrant when the agents entered the room, and he answered on two or I believe three occasions, and I cited the page in the transcript, "no." At that point there was certainly ample opportunity for the State to call Detective Pharo or anybody else in rebuttal to say, oh, yeah, we said search warrant.

[6] Just as important as any other proposition, your Honor, I believe is the proposition that there should be some finality when evidence is closed on a hearing, and also an important doctrine of one of waiver, but I think perhaps more importantly is one of finality; that it is not a sound policy to go back after the evidence is closed on a hearing a month later and try to fill in gaps which ostensibly are in the evidence. That sort of thing invites after-the-fact fabrication, rather than the truth, to go back and look at the record and say, oh, that's not in there, well, let's go in after the fact and fill in that hole. Ms. Schwaemle indicates that she came in haste to the hearing. I suppose we all could look back at trials or hearings and wish we tried the perfect case or the perfect hearing,

but that's not the way it works. There is the position of finality and the proposition of waiver and those ought to be applied here.

I would also note in terms of haste that the notice for this hearing was sent out a full three weeks in advance of the hearing, and Ms. Schwaemle came armed with the *Moss* decision which also sets forth the proposition that – that the purpose of agents executing a search warrant should be made. I don't believe you should reopen under these circumstances, your Honor. I strenuously oppose it. I don't know of any authority for [7] it, and none is cited in the State's motion.

THE COURT: Well, I don't know that there is a great deal of authority in any – in any context on motion – any context on motions for reconsideration, but I think one of the things, obviously, that the court has to look at is what is the prejudice that attaches to the opposing party to have a full record. I don't for one minute think that, if this case would go up to the Court of Appeals, that they would have any – any hesitation at all to send it back to the trial court for further findings of fact. That is not unusual at all, especially when, as in this case, they would be put on alert that there is something of a factual – an evidentiary nature which had not been brought. I don't disagree with you, Mr. Berman, that there is some need for finality, but I am realistic enough to know that at least in the criminal area there is not much finality in anything. I constantly hear and rehear post-trial, post-conviction motions *ad nauseam*, some brought by attorneys who are representing clients, who then will bring the same motions pro se. So I don't disagree with you that there should be some finality, but, unfortunately, that

is an objective, although we strive for it, we don't seem to be able to accomplish that. Absent any prejudice, I am going to allow the State's motion. I will grant the [8] motion to supplement record.

* * *

RICHARD D. PHARO,

called as a witness, having been first duly sworn, was examined, and testifies as follows,

DIREST EXAMINATION BY MS. SCHWAEMLE:

Q Detective Pharo, could you state your full name and spell your last.

A Richard D. Pharo. The last name is spelled P-H-A-R-O.

Q Detective Pharo, I want to again direct your attention to December 31 of last year, when the warrant was executed at Room 138 of the Ramada Inn. Prior to entry into Room 138, Detective Pharo, did you announce the purpose of entry into that room?

A Personally, no.

Q Did you hear any other persons in your presence announce the purpose of entry into that room?

[9] A There were at least two other officers that I heard announce that we had a search warrant.

Q And do you recall specifically what was said or shouted?

A The words, "search warrant," was shouted along with "police."

Q Subsequent – in fact, immediately after the hearing on September 2nd, did you talk with me about that fact?

* * *

THE WITNESS: Yes, I did.

MS. SCHWAEMLE:

Q And what, if anything, did you tell me about those circumstances at that time immediately after the hearing?

A Our discussion was whether or not anyone had yelled the word "search warrant," prior to the entry into – entry into the motel room, and I advised you that I heard at least two people announce "search warrant," one of which I thought might have been Detective Teuscher.

Q Did you then inquire further from Detective Teuscher about whether in fact he had –

A Yes, later that day, when officer – or Detective Teuscher arrived at work, I discussed the incidents with [10] him and asked if he remembered announcing that we had a search warrant prior to entering the room, and he stated that he did remember distinctly.

MS. SCHWAEMLE: Thank you, Detective, that's all I have.

THE COURT: Cross-examine.

CROSS-EXAMINATION BY MR. BERMAN:

Q Detective Pharo, before entering the room at the Ramada Inn, it was kicked in, correct; the door was kicked in?

A It was forced open, yes.

Q that was by Officer Peregoy, correct?

A Yes.

Q And when in relation to the door being forced open by Officer Peregoy was the word search warrant uttered, seconds before?

A Probably. From what I recall it's when I hear the bang of the door going open.

Q And simultaneous with that you heard the word search warrant?

A Yes.

Q Who initiated the conversation between you and Ms. Schwaemle after the hearing on September 2nd?

A I think Ms. Schwaemle did.

Q You don't recall for sure?

A No.

[11] Q And other than asking you whether someone stated search warrant when the room at the Ramada Inn was being searched, what else did she ask you?

A We talked about who was there and if I remembered who may have mentioned it. I had remembered that Officer Halford was also in full military uniform, and it was my belief that Officer Halford also yelled search warrant at the time.

Q And I take it you and Ms. Schwaemle discussed why that fact was significant?

A Yes, that we had announced ourselves prior to entry into the room was discussed.

Q Had you discussed why the question of whether you announced your identity and your purpose was significant?

A There is case law stating that officers have to do that, and I also discussed the fact with Ms. Schwaemle that I was aware of the fact that we had to announce ourselves and our purpose based on past court proceedings, and that's one of the reasons why more than one person announces and states why we're there when we execute search warrants. If there are ten people executing a search warrant, I know in the past I've heard five to ten people holler search warrant as we go through the room. That was part of the discussion.

Q Now, after you testified, you remained on September [12] 2nd – you remained in the courtroom, did you not?

A For a time, yes.

Q And you remained in the courtroom while Mr. Richards testified, isn't that true?

A Yes.

Q And you heard Mr. Richards testify, did you not?

A I recall that he testified, yes.

Q And you were available at that time to be recalled as a witness, were you not, by the State?

A Yes, I was.

Q Prior to testifying on September 2nd of this year, you spoke with Ms. Schwaemle, isn't that true? Let me rephrase that. You spoke with Ms. Schwaemle about your testimony before you actually took the stand on September 2nd, isn't that correct?

A Just briefly, yes.

Q And she went over with you at that time your recollections of what occurred when the search warrant was executed at the room at the Ramada Inn, correct?

A Not completely correct. I asked Ms. Schwaemle why we were at the hearing, and I was advised it was a suppression hearing. I asked her what she wanted me to testify to, and it was something similar to what happened that evening. We didn't go over question – a question-answer type interview between the two of us.

[13] Q She told you that she was going to ask you questions about what happened at the time the search warrant was executed, correct?

A Yes.

Q And you knew you were going to be asked questions about what you saw and what you heard that evening, correct?

A Yes.

Q I suppose it was that early morning actually, correct?

A Yes.

* * *

THE COURT: Testimony is closed. I don't know that there is any need for argument, counsel. I don't know that this would – I can't conceive of any way that this supplemented testimony would change the decision that I initially made. I assume you don't wish to argue that it should, Ms. Schwaemle.

MS. SCHWAEMLE: I don't think it should change the [14] ultimate decision, no.

THE COURT: And other than make it stronger, I assume you have no –

MR. BERMAN: Judge, you know, I always have hope, but I really don't think it is going to change your decision so, no, I don't care to argue it.

* * *

CIRCUIT BRANCH #1

WISCONSIN DANE COUNTY

State of Wisconsin, Plaintiff

-vs-

STEINEY J. RICHARDS, Defendant

11/12/72
Defendant's Date of Birth

TYPE OF CONVICTION (Select One)

XX Sentence to Wisconsin State Prisons

__ Sentence Withheld, Probation Ordered

__ Sentence Imposed & Stayed, Probation Ordered

COURT CASE NUMBER
92 CF 124

The defendant entered plea(s) of: [ ] Guilty [ ] Not Guilty [XX] No Contest

The [XX] Court [ ] Jury found the defendant guilty of the following crime(s):

CRIME(S)

CT 1: PROHIBITED ACTS A-PENALTIES

CT 2: IMPOSITION PENALTIES

WIS STATUTE(S) VIOLATED	FELONY OR MISDEMEANOR (F OR M)	CLASS (A-E)	DATE(S) CRIME COMMITTED
161.41(lm)(cm)4	F		12/31/91
139.88 139.95(2)	F		On or about 12/31/91

(Filed October 12, 1992)

IT IS ADJUDGED that the defendant is convicted on 10/12/92 as found guilty and:

[XX] on 10/12/92 is sentenced to prison for CT 1: 13 YEARS, FORTHWITH, WITH CREDIT FOR 286 DAYS. CT 2: 3 YEARS, CONCURRENT WITH CT 1, WITH CREDIT FOR 286 DAYS.

[ ] on _____ is sentenced to intensive sanctions for _____

[ ] on _____ is sentenced to county jail/HOC for _____

[ ] on _____ is placed on probation for _____

CONDITIONS OF SENTENCE/PROBATION

Obligations: (Total amounts only)

Fine $_____
(includes jail assessments; drug assessments; penalty assessments)

Court costs $_____
(includes service fees; witness fees; restitution surcharge; domestic abuse fees; subpoena fees; automation fees)

Attorney fees $_____
Restitution $_____

Other $_____

Mandatory victim/witness surcharge(s)

felony _____ counts
$_____

misdemeanor _____ counts
$_____

Jail: To be incarcerated in the county jail/HOC for

_____

_____

Confinement Order For Intensive Sanctions sentence only – length of term: _____

Miscellaneous

Court imposed $25,000FI + 5000PA + 15,000DG + 20FE + 50VW + 250JA = $45,320.00 (CT 1); $50VW (CT 2) TOTAL = $45,370.00-TO BE PAID DURING TERM OF SENTENCE.

IT IS ADJUDGED that ___ days sentence credit are due pursuant to s. 973.155 Wis. Stats. and shall be credited if on probation and it is revoked.

IT IS ORDERED that the Sheriff shall deliver the defendant into the custody of the Department located in the City of WAUPUN, DODGE CORRECTIONAL INSTITUTION .

NAME OF JUDGE
ROBERT A. DECHAMBEAU

Illegible ATTORNEY
JUDY SCHWAEMLE, ADA

DEFENSE ATTORNEY
MORRIS BERMAN

BY THE COURT:

/s/ Loreen C. Redepenning
Clerk/Deputy Clerk

10/12/92
Date Signed

COURT OF APPEALS
DECISION
DATED AND RELEASED

March 3, 1994

NOTICE

No. 93-0391-CR

STATE OF WISCONSIN IN COURT OF APPEALS
DISTRICT IV

STATE OF WISCONSIN,

Plaintiff-Respondent,

v.

STEINEY J. RICHARDS,

Defendant-Appellant.

APPEAL from a judgment and an order of the circuit court for Dane County: ROBERT DE CHAMBEAU, Judge. *Affirmed.*

Before Gartzke, P.J., Dykman and Sundby, JJ.

SUNDBY, J. In this warranted drug search and seizure case, defendant Steiney J. Richards relies on our decision in *State v. Stevens*, 173 Wis.2d 290, 496 N.W.2d 201 (Ct. App. 1992). Because the Wisconsin Supreme Court reversed our decision, *State v. Stevens*, No. 92-1557-CR (Wis. Feb. 8, 1994), and created a "drug house (exception to the "knock and announce" rule which applies here, we affirm the judgment of conviction and the order denying Richards' motion to suppress evidence of drugs seized in the search of his motel room.

At 3:40 a.m. on December 31, 1991, police officers executed a warrant to search Richards' motel room. Richards does not claim that the police had failed to establish probable cause to obtain a warrant to search his room for drugs. The sole issue he raises is whether, when their attempt to gain entry through a ruse failed, the police were required to comply with the "knock and announce" rule.

In *Stevens*, the Wisconsin Supreme Court adopted a "blanket" "drug house" rule. *Stevens*, slip op. at 15. The court concluded that, "where the police have a warrant to search the property, the residents retain only a very limited interest in privacy. The warrant authorizes the police to enter the residence and search for evidence pursuant to the search warrant." *Id.* at 17. The court further explained that "the societal interest in stopping the drug trade, combined with the police officers' safety interest, outweigh[s] the occupants' limited privacy interests." *Id.* at 18. The *Stevens* court concluded that that privacy interest is protected by the probable cause requirement which must be met before a warrant may be issued to search a residence for evidence of delivery of drugs or evidence of possession with intent to deliver drugs. *See id.* at 9-10. When that probable cause requirement is met, the police may execute a warrant to search a private residence for drugs without first knocking and announcing their presence and purpose.

Under the "drug house" exception, the officers' search of Richards' motel room was reasonable and did not violate his limited right of privacy.

By the Court, – Judgment and order affirmed.

Not recommended for publication in the official reports.

STATE of Wisconsin, Plaintiff-Respondent,

v.

Steiney J. RICHARDS, Defendant-Appellant-Petitioner.

Supreme Court

No. 93-0391-CR. Oral argument April 3, 1996. – Decided June 12, 1996.

(Affirming 183 Wis. 2d 429 (table), 516 N.W.2d 19 (Ct. App. 1994).)

(also reported in 201 N.W.2d 839)

REVIEW of a decision of the Court of Appeals. *Affirmed.*

For the defendant-appellant-petitioner there were briefs and oral argument by *David R. Karpe,* Madison.

For the plaintiff-respondent the cause was argued by *Stephen W. Kleinmaier,* Assistant Attorney General, with whom on the brief was *James E. Doyle,* Attorney General.

WILLIAM A. BABLITCH, J. Steiney J. Richards (Richards) seeks review of a decision of the court of appeals affirming his conviction for possession of cocaine base with the intent to deliver. Richards argues that because the police failed to "knock and announce" prior to entering his motel room to execute a search warrant, any evidence seized must be suppressed. The issue is simply stated: whether the Fourth Amendment allows a blanket exception to the general requirement of "knock and announce" (the rule of announcement) for entries into premises pursuant to a search warrant for evidence of felonious drug delivery. We conclude that exigent circumstances are always present in the execution of search warrants involving felonious drug delivery: an extremely

high risk of serious if not deadly injury to the police as well as the potential for the disposal of drugs by the occupants prior to entry by the police.[1] The public interests inherent in these circumstances far outweigh the minimal privacy interests of the occupants of the dwelling for which a search warrant has already been issued. Accordingly, we re-affirm *State v. Stevens*, 181 Wis.2d 410, 511 N.W.2d 591 (1994), *cert. denied*, 115 S.Ct. 2245 (1995), and conclude that police are not required to adhere to the rule of announcement when executing a search warrant involving felonious drug delivery.[2]

As a prefatory note, we took this case to examine the continuing validity of *Stevens* in light of the recently decided U.S. Supreme Court case of *Wilson v. Arkansas*, 115 S.Ct. 1914 (1995). We conclude that *Stevens* remains valid. In *Stevens*, this court adopted a blanket exception to the rule of announcement in cases involving a search

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[1] The concurrence's position would, in many instances, place the police in situations of great personal risk. It makes neither good law nor good sense. Despite the overwhelming evidence across the country of the inherent dangerousness of these situations, the concurrence would deny the police the right to forego "knock and announce" unless the police had specific information about the dangerousness of the drug house to be searched and specific information about the dangerousness posed by its occupants. Thus, in those cases in which such specific information is unavailable, the concurrence would force the police into the untenable position of subjecting themselves to extremely high risks detailed in this opinion. We decline to follow the concurrence's invitation.

[2] We use the phrase "felonious drug delivery" to mean felonious delivery of drugs or felonious possession with intent to deliver drugs in violation of Subchapter IV, Wis.Stat. §§ 161.41, 161.42 and 161.43.

warrant for felonious drug delivery. *Wilson*, decided subsequently to *Stevens*, held that the rule of announcement forms part of the Fourth Amendment reasonableness inquiry. The Court in *Wilson* left it to the lower courts to determine the circumstances under which an unannounced entry is reasonable under the Fourth Amendment. We proceed to do so now.

The dispositive facts for purposes of this appeal can be stated succinctly: on December 31, 1991, police executed a search warrant for the motel room of the defendant seeking evidence of the felonious crime of Possession with Intent to Deliver a Controlled Substance in violation of Wis.Stat. § 161.41(1m) (1991-92).[3] They did not knock and announce prior to their entry. Drugs were seized.

The circuit court denied Richards' motion to suppress. Richards subsequently entered pleas of no contest to the felony of possession of cocaine base with the intent to deliver, Wis.Stat. § 161.41(1m), and a tax stamp violation, Wis.Stat. § 139.95(2).[4] The court found him guilty

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[3] All future statutory references will be to the 1991-92 volume unless otherwise indicated. Wis.Stat. § 161.41(1m) provides in relevant part:

(1m) Except as authorized by this chapter, it is unlawful for any person to possess, with intent to manufacture or deliver, a controlled substance.

[4] Wisconsin Stat. § 139.95(2) states, in relevant part:

(2) A dealer who possesses a schedule I controlled substance or schedule II controlled substance that does not bear evidence that the tax under s. 139.88 has been paid may be fined not more than $10,000 or imprisoned for not more than 5 years or both.

and sentenced him to 13 years imprisonment on the possession with intent count and three years concurrent imprisonment on the tax stamp count. Richards appealed. The court of appeals upheld the circuit court's ruling, relying on *Stevens*. Richards filed a petition for review which we granted.

The sole issue before this court is whether the Fourth Amendment to the United States Constitution[5] allows a blanket exception to the general requirement of "knock and announce" for entries into premises pursuant to a search warrant for evidence of felonious drug delivery. This is a question of law that we review without deference to the lower courts. *State v. Betterley*, 191 Wis.2d 407, 416-17, 529 N.W.2d 216 (1995).

Richards summarizes the issue in one sentence: "The blanket 'drug house' exception to the 'knock and announce' rule violates the Fourth Amendment's reasonableness requirement." Richards contends that the U.S. Supreme Court decision in *Wilson* forbids blanket rules regarding search and seizure because the reasonableness of each search must be examined on a case-by-case basis. The State of Wisconsin (State) argues that *Wilson* does not forbid blanket rules and, under *Wilson*,

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[5] Amendment IV of the United States Constitution states: The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

the blanket rule announced in *Stevens* is still valid. We agree with the State.

The Fourth Amendment to the United States Constitution and Wisconsin Constitution art. I, § 11 protect the security of people "in their persons, houses, papers, and effects against unreasonable searches and seizures." While this court may interpret Wis. Const. art. I, § 11 more strictly than the United States Supreme Court interprets the Fourth Amendment, it has consistently and routinely conformed the law of search and seizure under the Wisconsin Constitution to the law developed by the United States Supreme Court under the Fourth Amendment. *State v. Williams*, 168 Wis.2d 970, 981, 485 N.W.2d 42 (1992); *see State v. Guzman*, 166 Wis.2d 577, 586-87, 480 N.W.2d 446 (1992).

The Fourth Amendment proscription against unreasonable searches and seizures not only requires that there be probable cause to undertake the search or make the seizure but also that the search or seizure be conducted in a reasonable manner. *Tennessee v. Garner*, 471 U.S. 1, 7-8 (1985). The rule of announcement, which requires police officers seeking to enter a dwelling in the execution of a search warrant to announce their identity and allow time for the door to be opened voluntarily, addresses the manner in which a legitimate governmental intrusion is to take place. *Williams*, 168 Wis.2d at 981. The rule of announcement has a common law heritage and serves three primary justifications: (1) protecting the individual's privacy in the home; (2) decreasing the potential for violence by alerting the resident that the officer is legitimately on the premises; and (3) preventing the physical

destruction of property by giving the resident the opportunity to admit the officer voluntarily. *Id.* at 981-82. Under certain circumstances, a search is reasonable under the Fourth Amendment even if the police dispense with the rule of announcement and execute a no-knock entry. *Wilson,* 115 S.Ct. at 1918-19; *see also Stevens,* 181 Wis.2d at 423. The knock and announce rule may be excused if "exigent circumstances" exist to justify the no-knock entry. *United States v. Singer,* 943 F.2d 758, 762 (7th Cir.1991). Exigent circumstances " 'include a reasonable belief that announcement of police presence would endanger the safety of the police or others, or a reasonable belief that unannounced entry is required to prevent the destruction of evidence.' " *Williams,* 168 Wis.2d at 982 (citations omitted).

These "exigent circumstances" formed the basis of our decision in *State v. Stevens.* In *Stevens,* we held that when the police have a search warrant, supported by probable cause, to search a residence for evidence of delivery of drugs or evidence of possession with intent to deliver drugs, they necessarily have reasonable cause to believe exigent circumstances exist. *Stevens,* 181 Wis.2d at 424-25. We reasoned that the rationale behind the rule of announcement was no longer valid in today's drug culture. "In fact, by announcing their presence, police may actually increase the likelihood for violence." *Id.* at 428. When the police execute a search warrant for evidence of drug delivery, there is reasonable cause to believe both that drugs will be destroyed and evidence lost, and that the occupants of the residence will be armed. *Id.* at 432. Therefore, a no-knock search is reasonable any time the police have a warrant, supported by probable cause, to

search a residence for "evidence of drug dealing." *Id.* The limited privacy interests of the individual were balanced against two other governmental interests: the public's substantial interest in stopping or at least curtailing the drug trade and its related crimes, and the police officers' interest in protecting themselves and others from harm. *Id.* This court concluded:

> When the police execute a search warrant for evidence of delivery of drugs or evidence of possession with intent to deliver, there is reasonable cause to believe both that the drugs will be destroyed and evidence lost and that the occupants of the residence will be armed . . . Even when the police dispense with the entire knock and announcement, the societal interest in stopping the drug trade, combined with the police officers' safety interest, outweigh the occupants' limited privacy interests.

Stevens, 181 Wis.2d at 432.

Richards contends that the practical effect of *Stevens* is a flat rule which cannot be valid given the level of intrusion and the fact that too much discretion is allowed to police officers. Richards argues that the blanket exception to the knock and announce rule is inconsistent with the U.S. Supreme Court's decision in *Wilson.*

In *Wilson,* the defendant challenged a police entry into her home pursuant to a search warrant authorizing a search for evidence of drugs and drug paraphernalia. The defendant's suppression motion alleged that the police violated the common law principle requiring them to knock and announce their presence and authority before entering. The U.S. Supreme Court held that whether the

officers knock and announce their presence and authority before entering a dwelling as required by the common law "forms a part of the Fourth Amendment reasonableness inquiry." *Id.* at 1916. The Court, however, noted that not all unannounced entries are unreasonable. "[L]aw enforcement interests may also establish the reasonableness of an unannounced entry." *Id.* at 1919. The Court stated:

> This is not to say, of course, that every entry must be preceded by an announcement. The Fourth Amendment's flexible requirement of reasonableness should not be read to mandate a rigid rule of announcement that ignores countervailing law enforcement interests. As even petitioner concedes, the common-law principle of announcement was never stated as an inflexible rule requiring announcement under all circumstances.

Id. at 1918. The Court recognized that under certain circumstances, the presumption in favor of announcement necessarily gives way to contrary considerations. These contrary considerations include the threat of physical harm to the police, the pursuit of a recently escaped arrestee, or the belief that evidence will likely be destroyed. *Id.* The Court stated:

> We need not attempt a comprehensive catalog of the relevant countervailing factors here. For now, we leave to the lower courts the task of determining the circumstances under which an unannounced entry is reasonable under the Fourth Amendment.

Id. at 1919.

Richards argues that the blanket "drug house" exception to the knock and announce rule adopted by this court in *Stevens* is no longer viable in light of *Wilson*. Richards further contends that *Wilson* requires a reasonableness analysis to be performed for every unannounced search and seizure. We disagree.

In *Stevens*, this court did not announce a blanket rule doing away with the common law rule of announcement. Instead, we adopted a narrow exception to the general rule: when police have a search warrant to search a premises for evidence of felonious drug delivery, they do not have to knock and announce. When police have probable cause to support a search warrant for evidence of felonious drug delivery, the potential for dangerousness to the police and the potential for the destructibility of evidence is so great as to overcome the general rule. The very facts supporting probable cause to believe that drugs and drug dealers are present in a dwelling also lead to the reasonable belief that exigent circumstances exist. In sum, we conclude that exigent circumstances are always present when a search warrant for evidence of felonious drug delivery is executed.[6]

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[6] The State's brief argues extensively concerning the "level of justification" the Fourth Amendment requires before the police can legally make an unannounced entry to execute a search warrant for evidence of drug dealing. The State argues that the proper level of justification for a no-knock entry is a reasonable suspicion that an announcement would endanger the safety of the officers and/or occupants, or a reasonable suspicion that an announcement would result in the destruction of evidence.

Wilson does not forbid blanket rules; rather, it requires such rules to be supported by the standard of "reasonableness." The Court left it to the lower courts to determine "the circumstances under which an unannounced entry is reasonable under the Fourth Amendment." *Wilson*, 115 S.Ct. at 1919.

The reasonableness of a search generally turns on whether it was conducted pursuant to a valid warrant. *U.S. v. U.S. District Court*, 407 U.S. 297, 309-10, 314-15 (1972). In deciding whether a particular police practice is reasonable, the Court has repeatedly said that the importance of the public interests must be weighed against the nature of the intrusion upon Fourth Amendment rights. *Maryland v. Buie*, 494 U.S. 325, 332 (1990). The Court stated that the balancing of these competing interests is " 'the key principle of the Fourth Amendment.' " *Garner*, 471 U.S. at 8 (citation omitted).

We balance these competing interests by looking first to the public interests involved when police execute a search warrant for felonious drug delivery. Law enforcement officers have a substantial interest in being able to secure the site so that it may be searched promptly,

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We need not address what level of justification is necessary in this case. Here, we are dealing with the particular circumstances of a search warrant for evidence of felonious drug delivery. Our holding is based on the assumption that drug dealers will have weapons and pose a danger to officers, and that drug dealers will destroy evidence or at least attempt to destroy evidence after announcement by the police. Therefore, because exigent circumstances are always present, we do not address the issue concerning what level of justification is needed for a no-knock entry. This issue must be left to a case in which drugs are not involved.

efficiently and safely. The success of police in searching for evidence and instrumentalities of drug dealing depends on their ability to establish command of the scene quickly and to secure the safety of themselves, the occupants and the place to be searched. Note, D. Allegro, *Police Tactics, Drug Trafficking, and Gang Violence: Why the No-Knock Warrant Is an Idea Whose Time Has Come,* 64 Notre Dame L.Rev. 552, 553 (1989) [hereinafter Allegro].

Police officers face an unquantifiable risk of violence every time they go into a house to execute a search warrant.[7] The Court has recognized the unique danger

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[7] The following represents only some of the recent newspaper articles documenting the escalating violence police face each day:

> A man was killed, and a Columbus police officer was slightly wounded last night during a drug raid. It was the second time this year that officers have been wounded in Near East Side Raids.

Erin Marie Medick, Man Slain, *Swat Officer Wounded Shootings Came in Near East Side Raid,* The Columbus Dispatch, Mar. 15, 1996.

> Designed to serve search warrants on crack houses, the Columbus Police Division's investigative and tactical unit is trained to enter homes where the risk of retaliation and gunfire is high. . . . The shooting occurred after police announced – as required by law – that they would be coming into the house, said Lt. William McKendry of the division's narcotics squad.

Alice Thomas, *Drug Raids Becoming Riskier For Police,* The Columbus Dispatch, Jan. 19, 1996.

> Interviews with police officers and a ballistics study will be used to determine who shot an Omaha police officer when police burst into a home to make an arrest Tuesday night, police said.

police officers face in suspects' houses because the officers are coming onto their adversaries' "turf" which has a

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Angie Brunkow, *Origin of Shot That Hit Officer Sought*, The Omaha World-Herald, Mar. 1996.

> Police raided what they said was a family-run drug house early Saturday morning and then went into the drug business for a few hours. . . . Police confiscated 105 bags of heroin worth $2,600, about $5,000 worth of crack cocaine and six guns.

Karen Henderson, *Raid-Sting at Drug House Leads to 10 Arrests*, The Plain Dealer, Feb. 12, 1996.

> At least seven kinds of illegal drugs worth about $50,000, four guns and $36,500 in cash were seized by police when they raided a Spring Township house Wednesday morning, according to officials. . . . "This is the kind of thing we're used to finding, this and a lot more," he said, gesturing to an illegal sawed-off 12-gauge shotgun and a TEC-DC9 9mm semiautomatic pistol with a 30-bullet clip.

Steven Reinbrecht, *Police Raid Spring Twp. House, Confiscate Drugs, Guns and Cash*, Reading Eagle, Reading Times, Feb. 15, 1996.

> A SWAT team leading a force of more than 100 officers Wednesday raided an apartment building that police said had been turned into a fortress by drug dealers. . . . "There were armed guards at all entrances to the building, armed internal patrols 24 hours a day. All the key players were in constant contact with each other with hand-held radios." . . . That drug dealers could control an entire building in a city like Racine shows that "the drug thing is all over the place," Higgins said. "It doesn't matter how big the city is. This is like a nest."

Ann Bothwell, *SWAT Force Raids Racine Drug House*, The Milwaukee Journal, Jan. 29, 1992.

configuration unknown to the officers. In *Maryland v. Buie*, 494 U.S. 325 (1990), the Court acknowledged that:

> The risk of danger in the context of an arrest in the home is as great as, if not greater than, it is in an on-the-street or road-side investigatory encounter . . . [A]n in-home arrest puts the officer at the disadvantage of being on his adversary's "turf." An ambush in a confined setting of unknown configuration is more to be feared than it is in open, more familiar surroundings.

Id. at 333.

As one commentator notes, the risk that police must face is greatly increased by a knock and announce requirement:

> [A] police officer making a high-risk warrant entry is at a severe disadvantage. When he announces authority and purpose he makes himself readily identifiable. The suspect, concealed inside a house, will generally be able to see the officer, or know where the officer is since he is most often near the door. Even if the officer can see occupants inside the house, he does not know if they intend to resist unless they are naive enough to reveal their violent intentions. The officers are most vulnerable when entering the house. If the announcement has given the [suspect] time to arm himself, all he needs to do is aim his firearm at the door and wait for a target to appear.

Allegro, at 566 (footnotes omitted).

These risks are only heightened when drugs are involved.[8] The connection between drugs and weapons has been well documented by appellate courts. *Michigan v. Summers*, 452 U.S. 692, 702 (1981); *Stevens*, 181 Wis.2d at 420, 428-29; *Williams*, 168 Wis.2d at 984-85; *United States v. Kennedy*, 32 F.3d 876, 882 (4th Cir.1994) ("[T]he law has uniformly recognized that substantial dealers in narcotics possess firearms and that entrance into a situs of drug trafficking activity carries all too real dangers to law enforcement officers."); and *State v. Harris*, 384 S.E. 2d 50, 53 (N.C. App. 1989). The connection between drugs and weapons establishes that it is more than a possibility that guns will be found at the location that is the subject of a search warrant for drug dealing. Reporting on a study which concluded that drug dealers and gang members are the criminals most likely to use guns, an article in the New York Times noted:

> It is drug dealers, rather than drug users, who use guns, Professor Decker said, because they are usually carrying valuable quantities of drugs and large amounts of money and need the protection of a gun more than ordinary users.

Fox Butterfield, *Study Discounts the Role of Drug Users in Gun-Related Crime*, N.Y. Times, Oct. 8, 1995, at 36.

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[8] Statistics indicate that drug related violence is a growing contributor to police mortality. From 1977 to 1986, of the police officers murdered, 6.5 percent, or 57 of 875, were killed in situations involving drug matters. In 1985, 7.6 percent of police murders were drug related, and in 1986, 10.6 percent of police murders involved drug matters. Federal Bureau of Investigation, Crime in the United States: Uniform Crime Reports (statistics extracted from annual reports from 1977-1986). *See* Allegro at 570, n. 32.

The study revealed that, among arrestees who admitted selling illegal drugs in the past year, 25 percent reported they carried a gun all or most of the time. *Arrestees and Guns: Monitoring the Illegal Firearms Market,* National Institute of Justice, Research Preview, September 1995. The results of this study show that the likelihood of finding guns during the execution of a search warrant for drug dealing is "more than a possibility." The 25 percent figure in the study relates only to arrestees; and among arrestees it reflects only the admitted use of guns. The use of guns by all drugs dealers is certainly higher than the use reflected in that study. Nevertheless, even using the 25 percent figure in the study, "requiring police to knock and announce their identity before executing all search warrants for drug dealing would be tantamount to requiring the police before each warrant execution to play Russian roulette with a four-chamber gun." (Respondent's brief at 23).

When suspects resist the police with firearms, officers face serious disadvantages.[9] Allegro, at 554. They are

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[9] Firearms claimed the lives of 92 percent of the officers killed in the line of duty from 1977 through 1986. Seventy percent of the murders were committed by the use of handguns, 13 percent by rifles, and 9 percent by shotguns. U.S. Department of Justice, Federal Bureau of Investigation, Uniform Crime Reports, Law Enforcement Officers Killed and Assaulted 4 (1986).

Nationwide, an average of 17 of every 100 law enforcement officers were assaulted in 1986, an increase of 7 percent from 1985. During the year, 64,259 line-of-duty assaults were reported by 9,755 law enforcement agencies covering approximately 81 percent of the total United States population. These agencies employed a total of 380,249 officers. *Id.* at 41.

easily identified by spoken commands and uniform, while assailants may be difficult or impossible for the officers to see. *Id.* An assailant may determine when and where to shoot, and if he has time to prepare to resist, it takes him only half a second to fire an accurate shot from a cocked gun. *Id.* The police officer must evaluate whether the situation justifies use of deadly force, typically requiring evaluation of a series of factors, and if his or her gun is holstered, it takes him or her one to 1.2 seconds to draw and return fire. *Id.* at 554-55.

When an officer confronts a suspect who has a firearm in hand, in 40 percent of the cases the suspect will fire, will usually fire first, and will often shoot with a ballistically superior weapon. R.J. Adams & T.M. McTernan, *Street Survival: Tactics for Armed Encounters* 35 (1980). Police shootings almost invariably occur at close range and are over almost instantly.[10] Allegro, at 555.

> In the vast majority of cases, the officer is ten feet or less from the assailant. Normally, the initial exchange of gunfire is determinative, with most confrontations over in two to three seconds with no more than a total of three shots fired. Almost half the time, an officer will face

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Nearly 22,000 law enforcement officers were reported to have received personal injuries resulting from their assaults. *Id.*

[10] In almost half of the cases, the officer is five feet or less away. Of the more than 250 police officer murders in New York City from 1854 to 1980, the assailant was more than 20 feet away when he fired in only one case. See S. Chapman, *Cops, Killers and Staying Alive: The Murder of Police Officers in America* 21 (1986) (noting that from 1972-1984, 52.4 percent of officers murdered were zero to five feet from their assailants and 20.6 percent were six to ten feet away).

> multiple assailants. While the assailants will fire without regard to bystanders, the officer must accommodate their presence.

Id. at 555 (footnotes omitted).

In *Michigan v. Summers*, 452 U.S. 692, 702-03 (1981), the Court recognized that the "risk of harm to both the police and the occupants [of an area subject to a search] is minimized if the officers routinely exercise unquestioned command of the situation." The sooner the officers have complete control of the situation, the less likely it is that any confrontation between suspects and officers will escalate to the point of gunfire. Minimizing this risk, in turn, ensures the safety not only of the officers, but also of suspects and of innocent bystanders.

All of this points to the need for officers to control the scene immediately, not only for their own safety and the safety of others, but also to seize evidence of felonious drug delivery. After all, a search warrant commands officers to go to a particular place to seize evidence of drugs and drug paraphernalia. In *Stevens*, we recognized that the "easily disposable nature of narcotics provides police with evidence sufficient to form a reasonable belief that no-knock entry is necessary to prevent the destruction of evidence." *Stevens*, 181 Wis.2d at 425. If officers must knock and announce their authority and presence, they provide the occupants of the house with the opportunity not only to arm themselves, but to dispose of the evidence involving drugs.

Allowing police to take command of the situation is thus vital to the safe and effective execution of a search

warrant for evidence of felonious drug delivery. Moreover, the officers executing a search warrant are in the best position to decide how to take command of the situation. In some cases, police officers will undoubtedly decide that their safety, the safety of others, and the effective execution of the warrant dictate that they knock and announce; in other cases, they might decide that such a procedure would be counterproductive or even dangerous. "In cases like this, where the police have a valid warrant, supported by probable cause, to search a home for 'evidence of drug dealing,' the officers executing the warrant have the incentive to choose the safest method of entry." *Stevens*, 181 Wis.2d at 430. It is constitutionally reasonable to allow officers in the field to decide what course of action to pursue instead of requiring them to "take unnecessary risks. . . . " *Terry v. Ohio*, 392 U.S. 1, 23-24 (1968); *see also Graham v. Connor*, 490 U.S. 386, 396-97 (1989) (stating that the "calculus of reasonableness must embody allowance for the fact that police officers are often forced to make split-second judgments – in circumstances that are often tense, uncertain, and rapidly evolving. . . . ").

We now weigh these public interests of dangerousness and disposability against the individual's interest in having notice that a search warrant is about to be executed in a few short seconds. Richards argues that he has privacy interests in keeping the police outside of his dwelling until the police "knock and announce." Although we acknowledge that privacy interests in the home are fundamental, we also conclude that these interests are not sufficient to elevate Richards' privacy interests over the public's interest in having police officers

safely and effectively execute a search warrant for evidence of felonious drug delivery.

Richards' privacy interests are only slightly advanced by a knock and announce rule. Although Richards correctly notes that people normally have the highest expectation of privacy in their homes, this argument is largely irrelevant in this case. There is no dispute that within a matter of seconds after the police arrived with a search warrant, they were entitled to enter Richards' dwelling, with or without permission, and conduct as thorough a search as was reasonably necessary. The search had been authorized by a neutral magistrate, and would have occurred regardless of whether the police knocked and announced their presence.

> It is difficult to see, however, what actual protection is given to any right of privacy by the announcement rule. Once identity and purpose are stated, entry must always be permitted; if permission is denied, or even delayed for an inordinate amount of time, entry may be forced, provided the officer has a valid purpose in gaining admission. Since no discretion is vested in the occupant, in what manner does notice protect his privacy? . . .
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> Thus balanced, the protections to privacy seem to be somewhat tenuous when compared to the potential for public harm. This is particularly true with respect to potential destruction of evidence, especially when one considers that the probable cause requirement would have to be met in any event.

Sonnenreich and Ebner, *No-Knock and Nonsense, An Alleged Constitutional Problem*, 44 St. John's L.Rev. 626, 647 (1970).

Here, the disruption of privacy interests is almost entirely attributable to the valid warrant, not the unannounced entry. "[W]here the police have a warrant to search the property, the residents retain only a very limited interest in privacy." *Stevens*, 181 Wis.2d at 432. In *Stevens*, we stated that:

> Even under the rule of announcement, after the police have announced their identity and purpose, the occupants must let them in within a reasonable time or the police may force their way in. The occupants' privacy interests are limited to knowing the police are entering and perhaps effecting the method of entry. The occupants do not have the right to refuse entry.

Id.

When we compare these limited privacy interests to the substantial interest the public has in allowing the police to safely and effectively execute a search warrant, the balance overwhelmingly favors the public interest.

Police have widely regarded narcotics enforcement as a particularly dangerous area of police work for some time. However, beginning in the early 1980's, the hazards to police officers escalated. Street gangs, spawned by decay in America's cities, and already known for their propensity for irrational violence, entered the drug business on a major scale.[11] In the 1960's and 1970's, the

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[11] Street gangs have been documented in cities in the United States throughout most of the country's history, but

police confronted and adjusted to a higher level of violence.

When the risks of law enforcement change radically, the rules by which courts regulate the police should reflect those changes. Therefore, we conclude that exigent circumstances are always present in the execution of search warrants involving felonious drug delivery. The public interests in these circumstances far outweigh the minimal privacy interests of the occupants of the dwelling for which a search warrant has already been issued. Accordingly, we re-affirm *Stevens* and conclude that

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accounts by the media, practitioners, and some researchers suggest that gangs are now posing a more serious crime problem than in the past. U.S. Department of Justice, National Institute of Justice, *Street Gangs: Current Knowledge and Strategies* 1 (1993). And while reports conflict about the extent to which gangs play an organized role in drug trafficking, recent research suggests that gang members are highly visible in the drug trade. *Id.*

In addition, it is easy for gang members to obtain weapons.

> It's real easy (for teenagers to get guns). You just have to have the money, and know somebody who can get one. Most gang members have . . . it's probably related to a drug dealer. They contact the drug dealer and tell him, "I pay so much for a gun." He'll say "OK, I'll sell it to you." A . 12 gauge sawed-off would run, like, about 50 to 90 bucks. Nobody really ever buys a gun over 50 unless its a fully-automatic. . . . One of the main interests when someone (a gang member) breaks into a house [is] to look for guns or money. Really the guns they want to look for.

Catherine H. Conly, *Hearing Summary of the National Field Study on Gangs and Gang Violence in Dallas, Texas*, Revised Draft Report (Washington D.C.: National Institute of Justice, December 1991), at 13.

police are not required to adhere to the rule of announcement when executing a search warrant involving felonious drug delivery. The decision of the court of appeals is affirmed.

By the Court. – The decision of the court of appeals is affirmed.

SHIRLEY S. ABRAHAMSON, J. (*concurring*). On the basis of the facts found by the circuit court I conclude, as does the majority, that the entry executed against the defendant was reasonable under the Fourth Amendment. I write separately because I conclude that the majority's reaffirmation of the blanket exception to the knock-and-announce rule first decreed in *State v. Stevens*, 181 Wis.2d 410, 511 N.W.2d 591 (1994), *cert. denied*, 115 S.Ct. 2245 (1995),[1] fails to satisfy the Fourth Amendment's reasonableness requirement delineated by the United States Supreme Court in *Wilson v. Arkansas*, 115 S.Ct. 1914, 1918 (1995).

Wilson made clear that there is a "presumption in favor of announcement," 115 S. Ct. at 1918, but that the "Fourth Amendment's flexible requirement of reasonableness should not be read to mandate a rigid rule of

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[1] In *Stevens*, the court examined the facts of the case and concluded that they provided a reasonable basis for the law enforcement officers' unannounced entry. The *Stevens* court then proceeded to create a blanket rule that law enforcement officers need never comply with the knock-and-announce rule when the police have probable cause through a search warrant for evidence of delivery of drugs or evidence of possession of drugs with intent to deliver. *Stevens*, 181 Wis.2d at 435. The holding in *Stevens* jettisoned longstanding Wisconsin case law interpreting and applying the knock-and-announce rule.

announcement that ignores countervailing law enforcement interests." 115 S. Ct. at 1918. Law enforcement interests – including the threat of physical harm to law enforcement officers or the existence of reason to believe that evidence would likely be destroyed if advance notice were given – may establish the reasonableness of an unannounced entry. *Id.* at 1919.[2] The burden is on the prosecution to show exigent circumstances excusing the no-knock entry. *Id.*

By reaffirming *Stevens* and declaring that neither findings of fact nor a determination of reasonableness are necessary in any case involving a search warrant of the premises of a drug dealer, today's majority opinion ignores the Court's instructions in *Wilson*. The majority also ignores the Court's "long-established recognition that standards of reasonableness under the Fourth Amendment are not susceptible of Procrustean application" because "each case is to be decided on its own facts and circumstances." *Ornelas v. United States*, No. 95-5257, WL 276414 1996 at *5 (U.S. May 28, 1996) (quoting *Ker v. California*, 374 U.S. 23, 33 (1963)). Moreover, and also in contradiction to what *Wilson* teaches, the majority opinion's reasoning logically leads to the complete abandonment of the knock-and-announce rule in every case involving the execution of a search warrant.

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[2] The Court held "that although a search or seizure of a dwelling might be constitutionally defective if police officers enter without prior announcement, law enforcement interests may also establish the reasonableness of an unannounced entry." *State v. Wilson*, 115 S.Ct. 1914, 1919 (1995).

I.

The blanket exception embraced by the majority today cannot be squared with the *Wilson* decision. Under *Wilson*, the courts rather than law enforcement officers are charged with determining whether the facts and circumstances of a particular search comply with the Fourth Amendment's command that such a search be reasonable. *Wilson*, 115 S. Ct. at 1919.

The action taken by the Arkansas high court after the *Wilson* case was remanded from the United States Supreme Court provides an illustrative contrast with the action taken by the majority today. The Arkansas Supreme Court summarily remanded to the trial court even though the facts in *Wilson* provided significantly stronger grounds than are present in this case for recognizing an exigent circumstances exception to the knock-and-announce rule. In *Wilson*, evidence that the accused was a drug dealer included an actual purchase of drugs made by a police informant. Further, the accused had brandished a semi-automatic weapon while threatening to kill an informant if she worked for the police, while the accused's housemate had previously been convicted of arson and firebombing.

The Arkansas Supreme Court's reluctance to draw legal conclusions prior to the trial court's initial determination of whether a no-knock entry at issue was reasonable – despite strong evidence indicating that it was – contrasts sharply with this court's sweeping conclusion that *all* no-knock entries in cases involving drug dealers are, *ipso facto*, reasonable. Instead of "mak[ing] any necessary findings of fact and . . . mak[ing] the determination

of reasonableness" which *Wilson* requires,[3] the majority instead concludes that under current social conditions

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[3] Prior to executing the search warrant against the defendant in this case, the police knew that the defendant had previously been arrested for the possession of 63 packets of cocaine. Furthermore, after the defendant had checked out of another hotel, the police had found clear plastic sandwich bags like the ones used in packaging cocaine. Finally, information obtained from an informant demonstrated that the defendant and his companions had engaged in conduct that matched a drug courier profile, including paying in cash, refusing room service, and making and receiving numerous phone calls from their room.

While the circuit court found that these facts were sufficient to establish probable cause for a search warrant, it found them insufficient to justify a no-knock warrant and therefore rejected the request for a no-knock warrant.

When the police proceeded to execute the warrant, additional circumstances came into play. When the police first sought entry through a ruse, with one officer posing as a maintenance man, the defendant opened the door and then rapidly shut it again. The state and the defendant dispute whether the defendant recognized that the "maintenance man" was a police officer, as well as whether he saw the fully uniformed police officer standing to the right of the "maintenance man." The circuit court characted the defendant's testimony as self-serving and apparently accepted the officers' statement of what had happened.

Under these circumstances, compliance with the knock-and-announce-rule would constitute a "useless gesture." It has long been recognized "that notice is not required when it is evident from the circumstances that the authority and purpose of the police is already known to those within the premises." 2 Wayne R. LaFave, *Search and Seizure* § 4.8(f), at 620 (3d ed. 1996) (collecting cases); *see also State v. Berry*, 174 Wis.2d 28, 32, 496 N.W.2d 746 (Ct.App.1993) (when law enforcement officers hold

exigent circumstances are always present in the execution of search warrants involving felonious drug delivery.[4]

Had either the United States Supreme Court in *Wilson* or the Arkansas Supreme Court upon remand subscribed to a version of the blanket exception announced by the majority today, they need not have remanded for findings of fact and a determination of reasonableness, because there was no question but that the accused in *Wilson* was dealing drugs, owned a gun, and had threatened to use it. Both courts, however, declined the opportunity to announce a blanket rule such as the rule embraced today by the majority.[5]

Hence it is not surprising that federal and state courts (in addition to the Arkansas Supreme Court) which have had occasion to interpret and apply *Wilson*

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a "reasonable belief that compliance with the rule" of announcement "would be a useless gesture," they need not comply with it).

[4] The majority might more appropriately have heeded Justice Scalia's recent reminder that the purpose of the Fourth Amendment requirement of reasonableness "is to preserve that degree of respect for the privacy of persons and the inviolability of their property that existed when the provision was adopted – even if a later, less virtuous age should become accustomed to considering all sorts of intrusion 'reasonable.'" *Minnesota v. Dickerson*, 508 U.S. 366 (1993) (Scalia, J., concurring).

[5] According to the accused's reply brief in *Wilson* filed with the United States Supreme Court by the defendant, the state and all of the amici supporting the state's position sought a blanket rule exempting drug searches from the reach of the knock-and-announce rule. Reply Brief for Petitioner, *Wilson v. Arkansas*, No. 94-5707, 1995 WL 120155, at *11 (U.S. Mar. 17, 1955).

have also conducted fact-specific, case-by-case analyses in determining whether no-knock entries made in executing drug-related warrants had met the Fourth Amendment's requirement of reasonableness.[6] The majority

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[6] *See, e.g., United States v. Murphy*, 69 F.3d 237, 242-43 (8th Cir.1995), *cert. denied*, 116 S.Ct. 1032 (1996) (no-knock entry to execute search warrant on drug manufacturer's premises reasonable under *Wilson*; no-knock entries are reasonable when "particular facts regarding the premises to be searched" and "circumstances surrounding the execution of the warrant" establish exigent circumstances; police informed that accused sometimes carried a weapon, that weapons were on premises, that accused had a violent past and that accused was on parole from a second-degree murder conviction); *State v. Wilson*, 899 F.Supp. 521, 529 (Kan.1995) (no-knock entry to execute search warrant for crack cocaine upheld; determination of reasonableness required by *Wilson* requires that "officers had particular reasons to believe that exigent circumstances existed"; "reasonableness inquiry focuses on what particular facts regarding the premises" were known to officers at the time); *State v. Moore*, 535 N.W.2d 417 (Neb. Ct. App. 1995) (no-knock entry to execute search warrant on drug dealer's premises unreasonable under *Wilson*; given amount of marijuana to be seized, police believed it would be difficult to destroy it quickly; no evidence that the suspect was armed or dangerous); *State v. Vargas*, 910 P.2d 950 (N.M. Ct. App. 1995) (no-knock entry to execute arrest warrant against drug traffickers was reasonable; while fact that defendants were suspected of trafficking in drugs and of possessing weapons was not itself enough to excuse compliance with rule of announcement, review of the record revealed additional evidence of defendants' violent tendencies and thereby established reasonableness of a no-knock entry); *State v. Ordonez-Villanueva*, 908 P.2d 333 (Or.Ct.App. 1995) (no-knock entry to execute search warrant for controlled substances reasonable under *Wilson*; informant had previously seen controlled substances which might be easily destroyed if police complied with the knock-and-announce rule); *State v.*

opinion cites no cases – and I have found none – supporting its interpretation of *Wilson*.

Finally, the majority cites no United States Supreme Court case eliminating the requirement that officers be able to point to specific, articulable and individualized facts justifying their actions in each case. None of the cases cited by the majority relieves the state in Fourth Amendment cases from the requirement that officers' actions in a particular case be subject to meaningful judicial review to determine whether their actions are "objectively reasonable." *See, e.g., Terry v. Ohio*, 392 U.S. 1, 21-22 (1968); *Michigan v. Summers*, 452 U.S. 692, 702-03 (1981); *Graham v. Connor*, 490 U.S. 386, 396-97 (1989). While I

Mastracchio, 672 A.2d 438, 443 (R.I. 1996) (question of whether no knock entry to execute search warrant on drug dealer's premises was reasonable remanded to circuit court; although state alleged that no-knock entry was justified to preserve officers' safety and prevent destruction of evidence, circuit court had not made the requisite factual findings and determination of reasonableness); *Hargrave v. Commonwealth*, 464 S.E. 2d 176, 179 (Va. Ct. App. 1995) (no-knock entry to execute search warrant for drugs unreasonable under *Wilson*; although the object of the search was drugs, police did not have particularized suspicion that evidence could or would be readily destroyed).

See also United States v. Jewell, 60 F.3d 20, 23-24 (1st Cir.1995) (*Wilson* requires a determination of whether an affidavit presented in support of an application for a no-knock warrant describes circumstances establishing that a no-knock entry would be reasonable); *United States v. Conley*, 911 F.Supp. 169, 172 (W.D. Pa.1995) ("based on the teachings in *Wilson*, the Court believes that the circumstances of each factual situation should be considered by the Court in determining whether the unannounced entry is unreasonable under the Fourth Amendment").

recognize that "[t]he calculus of reasonableness must embody allowances for the fact that police officers are often forced to make split-second judgments," *Graham*, 490 U.S. at 397, it nevertheless is crucial that those judgments be assessed according to an "objective standard" by a detached and neutral judge. *Terry*, 392 U.S. at 21-22.

In allowing law enforcement officers rather than the courts to make the ultimate determination of whether a particular search has been conducted reasonably, the majority has ignored the United States Supreme Court's admonition that "[t]he scheme of the Fourth Amendment becomes meaningful only when it is assured that at some point the conduct of those charged with enforcing the laws can be subjected to the more detached, neutral scrutiny of a judge *who must evaluate the reasonableness of a particular search or seizure in light of the particular circumstances.*" *Terry v. Ohio*, 392 U.S. 1, 21 (1968) (emphasis added).

II.

The majority opinion characterizes its blanket exception as "a narrow exception to the general rule" requiring a knock-and-announce entry. Majority op. at ___. The majority's reasoning, however, leads inexorably to the conclusion that the police need never knock and announce and that their decision is not reviewable. As a result, the exception the majority opinion sets forth swallows the rule of announcement.

According to the majority, "[p]olice officers face an unquantifiable risk of violence every time they go into a house to execute a search warrant." Majority op. at ___. I

agree with this assessment. Forty-two percent of America's 96.4 million households have some kind of firearms. Twenty-four percent of the households have pistols, 27% have shotguns and 23% have rifles.[7] The federal Bureau of Alcohol, Tobacco and Firearms estimates that there are approximately 200 million firearms in the nation, about one per person.[8] As the majority opinion points out, firearms claimed the lives of 92% of the law enforcement officers killed in the line of duty between 1977 and 1986.

According to the reasoning of the majority, then, the large number of firearms in this country and the large percentage of deaths of officers caused by firearms would create a compelling need to eliminate the knock-and-announce rule in all search warrant entries; the probability that one or more of the occupants of any premises has access to a gun would, *ipso facto*, establish exigent circumstances making a no-knock entry reasonable.

Perhaps aware that its evidence pertaining to firearms proves far too much, the majority attempts to distinguish the dangers associated with executing search warrants related to drugs from the dangers accompanying the execution of any search warrant by claiming that the "risks are only heightened when drugs are involved." Majority op. at ___. However, the crime statistics cited by the majority do not support the contention that "drug

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[7] Brief for Petitioner, *Wilson v. Arkansas*, No. 94-5707, 1995 WL 39036, at *42 n. 49 (Ark. Jan. 24, 1995) (citing Statistical Abstract of the United States (1992), Tables 409 & 702).

[8] *See State v. Williams*, 168 Wis.2d 970, 992, 485 N.W.2d 42 (1992) (Abrahamson, J., concurring).

related violence is a growing contributor to police mortality." Majority op. at ___ n.8.

As I set forth in my concurrence to *Stevens*, 181 Wis.2d at 448 n.18, the total number of officers killed on duty declined from 1978 to 1991, as did the number of officers killed in arrest situations involving drug-related matters. Fewer officers (9 officers/4.3 percent) were murdered as a consequence of drug-related violence from 1992-94 than in the periods from 1978-81, 1982-86, or 1987-91.[9] From 1978-94 about twice as many officers were killed in traffic pursuits or stops as were killed in arrest situations involving drug-related matters.[10] During the same years, more officers were killed while answering disturbance calls for family quarrels than were killed in arrest situations involving drug-related matters.[11] The one officer killed in Wisconsin in 1995 was answering a domestic disturbance call.

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[9] U.S. Dept. of Justice Hindelang Criminal Justice Research Center, *1994 Sourcebook of Criminal Justice Statistics* at 357.

[10] The total number of law enforcement officers killed in traffic stops or pursuits was 184, while 94 were killed in disturbance calls for family quarrels and 91 were killed in arrest situations involving drug-related matters. During the period 1992-1994, 10 officers were killed in 1992 and 1993, respectively, and 9 were killed in 1994 while engaged in traffic pursuits or stops; during the same years, 3 officers were killed each year in arrest situations involving drug-related matters. *Id.*

[11] *Id.* The number and percentage of officers killed while handling or transporting prisoners in custody doubled between the period 1978-81 and 1987-91. *Id.*

What I stated in my concurrence to *Stevens* remains true today: while the death or injury of even one law enforcement officer is one too many, the empirical evidence cited does not support the majority's rationale that executing search warrants in drug cases is more dangerous to officers than other activities. *Stevens*, 181 Wis.2d at 449 (Abrahamson, J., concurring). If anything, those statistics argue that if law enforcement officers may dispense with the knock-and-announce rule in drug-related cases, they should be able to dispense with it altogether. Conversely, what *Wilson* teaches is that law enforcement officers may not dispense with the rule of announcement unless they can establish, on a case-by-case basis, that exigent circumstances justify an exception to the rule of announcement and render a no-knock entry reasonable under the Fourth Amendment.

The majority opinion rests on the premise that a knock-and-announce rule increases the likelihood of violence against law enforcement officers. In those cases, a rule of reasonableness would enable the officers to enter without announcement. In many other instances, however, law enforcement officers may expose themselves and other individuals to unnecessary violence when they do not announce their presence.[12]

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[12] Both the brief federal experience with no-knock entries as well as numerous recent newspaper articles indicate the often lethal risks that no-knock entries can pose to both law enforcement officers and the individuals whose homes they enter.

As I explain in my concurrence to *Stevens*, 181 Wis.2d at 447-48, a 1970 federal statute authorizing no-knock warrants was repealed only four years later, following numerous highly

Rather than affirming the sweeping blanket exception to the knock-and-announce rule first advanced in

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publicized no-knock raids in which terrified citizens, imagining that intruders were entering their homes, discovered instead that the "intruders" were law enforcement officers entering without notice. The statute, which was described by one senator as "an invitation to official lawlessness," provoked numerous newspaper articles recounting the details of various no-knock raids; more than 100 of them were reproduced in the *Congressional Record*. In Virginia, a woman who had previously been burglarized shot and killed a young officer who, executing a no-knock warrant, entered her bedroom in the middle of the night; in California, a father was shot through the head in his living room as he cradled his infant son. Both the woman and the man were innocent of any wrongdoing. *See* 119 *Cong. Rec.* 15,170-76 (1973) (collecting articles); 119 *Cong. Rec.* 23,242-58 (same); *see also* Charles Patrick Garcia, *The Knock and Announce Rule: A New Approach to the Destruction of Evidence Exception*, 93 Colum.L.Rev. 685, 704-05 (1993) (describing unfortunate incidents resulting from no-knock raids undertaken in accordance with the 1970 federal statute).

For more recent accounts of injuries to officers and innocent victims in no-knock drug entries, *see, e.g.*, Alan Abrahamson, *Nightmare of Shots in the Dark*, L.A. Times, Dec. 12, 1992, at 1 (U.S. drug agents acting on bad tip failed to identify themselves before making forcible entry; occupant, who thinks he is being robbed, shoots and wounds agent and is himself shot in leg, arm, shoulder and lung; no drugs found); James Bovard, *No-Knock Entries by Police Take Their Toll on Innocent*, Christian Science Monitor, May 24, 1994, at 18 (no-knock drug raids are frequently mistakes; describes, *inter alia*, no-knock entry in Stockton, CA, in which a 63-year-old homeowner killed a police officer and was then himself killed, although no drugs were found); Hipolito R. Corella, *Police Admit SWAT Team Raided Wrong Home*, Arizona Daily Star, July 29, 1993, at B1 (police crashed through window and detonated stun grenade in townhouse whose inhabitants included three children under

Stevens. I would heed the instructions of the *Wilson* Court and assess the reasonableness of the no-knock entry in this case on the basis of the facts presented. The court's decision today ignores *Wilson*, dispenses with longstanding Fourth Amendment jurisprudence requiring the assessment of reasonableness in each particular case, and may place the very law enforcement officers it purports to protect in greater peril. We should have availed ourselves today of the opportunity to correct our mistake in *Stevens*. Instead we have compounded it.

For the reasons set forth, I concur in the judgment.

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five and 75-year-old woman; owner dialed 911 and was told by the dispatcher that "the masked men screaming orders at frightened members of his family were police officers"); Toni Locy, *Police Admit Error, Apologize for Fatal Raid*, Boston Globe, Mar. 27, 1994 at 1 (in a drug raid, police make no-knock entry in wrong apartment, chasing 75-year-old minister, who suffered a fatal heart attack as a result); Sam Stanton, Cops' *Deadly Mistakes in All-Out War on Drugs*, San Francisco Examiner, Feb. 7, 1993 (no-knock drug raids often executed against wrong house, "and the tension involved in facing the unknown can lead to trouble"; describes three incidents involving innocent victims of no-knock entries).

SUPREME COURT OF THE UNITED STATES

No. 96-5955

Steiney Richards,

Petitioner

v.

Wisconsin

ON PETITION FOR WRIT OF CERTIORARI to the Supreme Court of Wisconsin.

ON CONSIDERATION of the motion for leave to proceed herein in forma pauperis and of the petition for writ of certiorari, it is ordered by this Court that the motion to proceed in forma pauperis be, and the same is hereby, granted; and that the petition for writ of certiorari be, and the same is hereby, granted. The brief of petitioner is to be filed with the Clerk and served upon opposing counsel on or before 3 p.m., Tuesday, February 11, 1997. The brief of respondent is to be filed with the Clerk and served upon opposing counsel on or before 3 p.m., Friday, March 7, 1997. A reply brief, if any, may be filed with the Clerk and served upon opposing counsel on or before 3 p.m., Tuesday, March 18, 1997. Rule 29.2 does not apply.

January 3, 1997